

| ORDER FOR SUPPLIES OR SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  |                                              |                            |                              |                                                                                                                                                 |                      |                                                                   |                        |                                 | PAGE 1 OF 50                                                                                                                                                 |                                                                                                                                     |  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|----------------------------------------------|----------------------------|------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|-------------------------------------------------------------------|------------------------|---------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|--|
| 1. CONTRACT PURCH ORDER/AGREEMENT NO.<br>SPRRA2-26-P-0005                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                              | 2. DELIVERY ORDER/CALL NO. |                              | 3. DATE OF ORDER/CALL (YYYYMMDD)<br>2026JAN21                                                                                                   |                      | 4. REQUISITION/PURCH REQUEST NO.<br>SEE SCHEDULE                  |                        | 5. PRIORITY<br>DOA2             |                                                                                                                                                              |                                                                                                                                     |  |
| 6. ISSUED BY<br>DEFENSE LOGISTICS AGENCY<br>JASIKA WILLIAMS<br>5201 MARTIN ROAD/DLA-AVN-AH<br>REDSTONE ARSENAL AL 35898-7340<br><br>EMAIL: JASIKA.WILLIAMS@DLA.MIL                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                              | CODE SPRRA2                |                              | 7. ADMINISTERED BY (If other than 6)<br>DCMA SOUTH<br>1040 RESEARCH BLVD, SUITE 100<br>MADISON AL 35758-2040                                    |                      |                                                                   |                        | CODE S0107A                     |                                                                                                                                                              | 8. DELIVERY FOB<br><br><input checked="" type="checkbox"/> DESTINATION<br><input type="checkbox"/> OTHER<br>(See Schedule if other) |  |
| 9. CONTRACTOR<br><br>YULISTA INTEGRATED SOLUTIONS, LLC<br>8600 ADVANCED GTWY SW<br>HUNTSVILLE, AL 35808-1336<br><br>NAME AND ADDRESS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                              | CODE 79K70                 |                              | FACILITY                                                                                                                                        |                      | 10. DELIVER TO FOB POINT BY (Date) (YYYYMMDD)<br>SEE SCHEDULE     |                        |                                 | 11. X IF BUSINESS IS<br><input checked="" type="checkbox"/> SMALL<br><input type="checkbox"/> SMALL<br>DISADVANTAGED<br><input type="checkbox"/> WOMAN-OWNED |                                                                                                                                     |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  |                                              |                            |                              |                                                                                                                                                 |                      | 12. DISCOUNT TERMS                                                |                        |                                 | 13. MAIL INVOICES TO THE ADDRESS IN BLOCK<br>See Block 15                                                                                                    |                                                                                                                                     |  |
| 14. SHIP TO<br>SEE SCHEDULE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |                                              | CODE                       |                              | 15. PAYMENT WILL BE MADE BY<br>DFAS-COLUMBUS CENTER<br>SOUTH ENTITLEMENT OPERATIONS<br>P O BOX 182317<br>COLUMBUS OH 43218-2317                 |                      |                                                                   |                        | CODE HQ0338                     |                                                                                                                                                              | MARK ALL PACKAGES AND PAPERS WITH IDENTIFICATION NUMBERS IN BLOCKS 1 AND 2                                                          |  |
| 16. TYPE OF ORDER<br>DELIVERY/CALL<br>PURCHASE X<br>THIS DELIVERY ORDER IS ISSUED ON ANOTHER GOVERNMENT AGENCY OR IN ACCORDANCE WITH AND SUBJECT TO TERMS AND CONDITIONS OF ABOVE NUMBERED CONTRACT.<br>Reference your <input type="checkbox"/> Oral <input type="checkbox"/> Written Quotation SPRRA225Q0056, Dated _____, furnish the following on terms specified herein.<br>ACCEPTANCE. THE CONTRACTOR HEREBY ACCEPTS THE OFFER REPRESENTED BY THE NUMBERED PURCHASE ORDER AS IT MAY PREVIOUSLY HAVE BEEN OR IS NOW MODIFIED, SUBJECT TO ALL OF THE TERMS AND CONDITIONS SET FORTH, AND AGREES TO PERFORM THE SAME. |  |                                              |                            |                              |                                                                                                                                                 |                      |                                                                   |                        |                                 |                                                                                                                                                              |                                                                                                                                     |  |
| <div style="display: flex; justify-content: space-between;"> <div>NAME OF CONTRACTOR</div> <div>SIGNATURE</div> <div>TYPED NAME AND TITLE</div> <div>DATE SIGNED (YYYYMMDD)</div> </div> <input checked="" type="checkbox"/> If this box is marked, supplier must sign Acceptance and return the following number of copies: 2                                                                                                                                                                                                                                                                                          |  |                                              |                            |                              |                                                                                                                                                 |                      |                                                                   |                        |                                 |                                                                                                                                                              |                                                                                                                                     |  |
| 17. ACCOUNTING AND APPROPRIATION DATA/LOCAL USE<br>SEE CONTRACT ADMINISTRATION DATA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  |                                              |                            |                              |                                                                                                                                                 |                      |                                                                   |                        |                                 |                                                                                                                                                              |                                                                                                                                     |  |
| 18. ITEM NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 19. SCHEDULE OF SUPPLIES/SERVICE             |                            |                              | 20. QUANTITY ORDERED/ACCEPTED*                                                                                                                  |                      | 21. UNIT                                                          | 22. UNIT PRICE         |                                 | 23. AMOUNT                                                                                                                                                   |                                                                                                                                     |  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  | SEE SCHEDULE                                 |                            |                              |                                                                                                                                                 |                      |                                                                   |                        |                                 |                                                                                                                                                              |                                                                                                                                     |  |
| * If quantity accepted by the Government is same as quantity ordered, indicate by X. If different, enter actual quantity accepted below quantity ordered and encircle.                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                              |                            |                              | 24. UNITED STATES OF AMERICA<br>MICHAEL ROMINE /SIGNED/ 2026JAN21<br>MICHAEL.I.ROMINE@DLA.MIL (256)876-0324<br>BY: CONTRACTING/ORDERING OFFICER |                      |                                                                   |                        | 25. TOTAL \$121,814.61          |                                                                                                                                                              |                                                                                                                                     |  |
| 27a. QUANTITY IN COLUMN 20 HAS BEEN<br><input type="checkbox"/> INSPECTED <input type="checkbox"/> RECEIVED <input type="checkbox"/> ACCEPTED, AND CONFORMS TO CONTRACT EXCEPT AS NOTED                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |                                              |                            |                              |                                                                                                                                                 |                      |                                                                   |                        |                                 |                                                                                                                                                              |                                                                                                                                     |  |
| b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |  |                                              |                            |                              | c. DATE (YYYYMMDD)                                                                                                                              |                      | d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE |                        |                                 |                                                                                                                                                              |                                                                                                                                     |  |
| e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                              |                            |                              | 28. SHIP. NO.<br><input type="checkbox"/> PARTIAL<br><input type="checkbox"/> FINAL                                                             |                      | 29. D.O. VOUCHER NO.                                              |                        | 30. INITIALS                    |                                                                                                                                                              |                                                                                                                                     |  |
| f. TELEPHONE NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  | g. E-MAIL ADDRESS                            |                            |                              | 31. PAYMENT<br><input type="checkbox"/> COMPLETE<br><input type="checkbox"/> PARTIAL<br><input type="checkbox"/> FINAL                          |                      | 32. PAID BY                                                       |                        | 33. AMOUNT VERIFIED CORRECT FOR |                                                                                                                                                              |                                                                                                                                     |  |
| 36. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |                                              |                            |                              |                                                                                                                                                 |                      |                                                                   |                        | 34. CHECK NUMBER                |                                                                                                                                                              |                                                                                                                                     |  |
| a. DATE (YYYYMMDD)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  | b. SIGNATURE AND TITLE OF CERTIFYING OFFICER |                            |                              |                                                                                                                                                 |                      |                                                                   |                        | 35. BILL OF LADING NO.          |                                                                                                                                                              |                                                                                                                                     |  |
| 37. RECEIVED AT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  | 38. RECEIVED BY (Print)                      |                            | 39. DATE RECEIVED (YYYYMMDD) |                                                                                                                                                 | 40. TOTAL CONTAINERS |                                                                   | 41. S/R ACCOUNT NUMBER |                                 | 42. S/R VOUCHER NO.                                                                                                                                          |                                                                                                                                     |  |

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|-------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------|---------------------|
| <b>CONTINUATION SHEET</b>                                               | <b>Reference No. of Document Being Continued</b><br>SPRRA2-26-P-0005<br><b>PIIN/SIIN</b> <b>MOD/AMD</b> | <b>Page 2 of 50</b> |
| <b>Name of Offeror or Contractor:</b> YULISTA INTEGRATED SOLUTIONS, LLC |                                                                                                         |                     |

SUPPLEMENTAL INFORMATION

Buyer Name: JASIKA WILLIAMS  
 Buyer Office Symbol/Telephone Number: DLA-AVN-AHD/(256)201-7563  
 Type of Contract 1: Firm Fixed Price  
 Kind of Contract: Supply Contracts and Priced Orders  
 Type of Business: Other Small Business Performing in U.S.  
 Surveillance Criticality Designator: B  
 Weapon System: Patriot

- \*\*\* End of Narrative A0000 \*\*\*

A-1. THIS REQUIREMENT IS AWARDED TO YULISTA INTEGRATED SOLUTIONS, LLC(CAGE 79K70), IAW 10 U.S.C. 2304(C)(1), FAR 6.302-1.

A-2. THIS REQUIREMENT IS IN SUPPORT OF THE WEAPON SYSTEM: M-D6 PATRIOT.

A-3. FLIGHT SAFETY/CRITICAL SAFETY ITEM (CSI) IS NOT REQUIRED.

A-4. FIRST ARTICLE (FAT) IS REQUIRED

A-5. FAT UNIT SHALL NOT BE RETAINED AS A MATERIAL STANDARD. TEST ITEM WILL NOT BE DESTROYED AS PART OF TESTING.

A-6. FIRST ARTICLE TEST IS REQUIRED.

A-7. SNRR MARKINGS ARE NOT REQUIRED.

A-8. TAMMS-A MARKINGS ARE NOT REQUIRED.

A-9. IUID MARKINGS ARE NOT REQUIRED.

A-10. RFID MARKINGS ARE NOT REQUIRED.

A-11 ARMS EXPORT CONTROL APPLICABLE.

"THE TECHNICAL DATA PACKAGE WILL BE PROVIDED VIA THE DoD SAFE SITE, <https://safe.apps.mil/> , WHICH CONTAINS TECHNICAL DATA WHOSE EXPORT IS RESTRICTED BY THE ARMS EXPORT CONTROL ACT (TITLE 22 U.S.C., SEC 2751 ET SEQ.) OR EXECUTIVE ORDER 12470. VIOLATION OF THESE EXPORT LAWS ARE SUBJECT TO SEVERE CRIMINAL PENALTIES. DUE TO CURRENT BETA.SAM.GOV SOFTWARE CONSTRAINTS, TECHNICAL DATA PACKAGES CANNOT BE ATTACHED TO THIS NOTICE. INTERESTED PARTIES MUST SUBMIT A REQUEST FOR TECHNICAL DATA PACKAGES VIA EMAIL TO CONTRACT SPECIALIST POINT OF CONTACT LISTED BELOW. ENSURE THE PRON NUMBER IS ENTERED IN THE SUBJECT LINE OF THE EMAIL. ONCE REQUESTS ARE RECEIVED, THE TECHNICAL DATA PACKAGES WILL BE SENT VIA THE DoD SAFE SITE, <https://safe.apps.mil/>. INTERESTED PARTIES HAVE 7 CALENDAR DAYS TO RETRIEVE AND DOWNLOAD THE TDP FROM THE DoD SAFE SITE BEFORE THE LINK EXPIRES\_ "

Export Control requires the applicable certifications to be current for both the quoter and manufacturer. The offeror and any source(s) of supply it will use for contract performance must have an active United States/Canada Joint Certification Program (JCP) certification to access export-controlled data. DLA does not intend to delay award in order for an ineligible offeror its source(s) supply to apply for and receive authority approval to access the export-controlled data.

- A-12. SERIAL NUMBERING IS REQUIRED.  
SERIAL NUMBERS: 985070 - 985073

A-13. FIT CHECK IS NOT REQUIRED.

A-14. THIS REQUIREMENT IS A FIRM FIXED PRICE (FFP),ONE TIME BUY(OTB)FOR THE FOLLOWING:  
NSN: 5998-01-563-7794, PN: 13589523, NOUN: CIRCUIT CARD ASSEMB.

A-15. CONTRACTOR POINT OF CONTACT INFORMATION:  
NAME: WENDY MCGEE  
TELEPHONE NUMBER: 256-319-1692  
E-MAIL ADDRESS: WENDY.MCGEE@YULISTA.COM

A-16. DCMA ACO POINT OF CONTACT INFORMATION:  
NAME: JEFFREY BRIDGE  
TELEPHONE NUMBER: 256-850-7321

|                           |                                                                                          |                                       |
|---------------------------|------------------------------------------------------------------------------------------|---------------------------------------|
| <b>CONTINUATION SHEET</b> | <b>Reference No. of Document Being Continued</b><br>SPRRA2-26-P-0005<br><b>PIIN/SIIN</b> | <b>Page 3 of 50</b><br><b>MOD/AMD</b> |
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**Name of Offeror or Contractor:** YULISTA INTEGRATED SOLUTIONS, LLC

E-MAIL ADDRESS: JEFFREY.BRIDGE.CIV@MAIL.MIL

A-17. CONTRACT SPECIALIST POINT OF CONTACT INFORMATION:

NAME: JASIKA WILLIAMS

OFFICE SYMBOL: DLA-AVN-AHD

TELEPHONE NUMBER: 256-201-7563

E-MAIL ADDRESS: JASIKA.WILLIAMS@DLA.MIL

A-18. FUNDS WILL BE OBLIGATED/CITED UPON ISSUANCE OF EACH DELIVERY ORDER.

A-19. ACCELERATED DELIVERY IS ENCOURAGED AND AUTHORIZED AT NO ADDITIONAL COST TO THE GOVERNMENT

A-20. CONTRACTOR FIRST ARTICLE TEST

Number of samples to be tested = 1

Inspection: Origin (DCMA)

Acceptance: Origin (DCMA)

Deliver FOB: Destination

BY: 455 DACA

First Article Test Report:

THE FIRST ARTICLE TEST REPORT WILL BE SENT ELECTRONICALLY TO:

DLAHSVPOSTAWARDTEAM@DLA.MIL

IF THE FILE IS TOO LARGE OR ENCRYPTION IS NEEDED, A DOD SAFE LINK WILL BE SENT TO YOU FOR UPLOAD USING <https://safe.apps.mil/> . PLEASE USE THE DLAHSVPOSTAWARDTEAM@DLA.MIL EMAIL ADDRESS TO REQUEST THE LINK

Inspection: Origin (DCMA)

Acceptance: Destination (SPRRA1) by the PCO

Ship to: SPRRA1 (DLAHSVPostAwardTeam@dla.mil)

WAWF submittal will be a INVOICE 2IN1

Acceptance of the FATR will take place first and then Acceptance of the FAT by DCMA will commence.

Delivery Schedule:

455 Days AR0: Contractor First Article completed and Report Submission

45 Days: Government Review and Notification to Contractor

500 DAFAA: Delivery of Production Units

455 DAR0

FIRST ARTICLE TEST TIME IS 30 DAYS. UNITS TO BE TESTED IS 1 EACH. FIRST ARTICLE TEST SHALL BEGIN ON A MUTUALLY AGREED UPON DATE BETWEEN THE GOVERNMENT AND THE CONTRACTOR. THE DATE SHALL OCCUR WITH ENOUGH TIME IN ADVANCE TO BEGIN SCHEDULED DELIVERIES 500 DACA (BASED ON PLT CALCULATIONS). THE CONTRACTOR SHALL NOTIFY THE CONTRACTING OFFICER IN WRITING 30 DAYS PRIOR TO THE PROPOSED DATE OF FIRST ARTICLE TESTING. THE FIRST ARTICLE TEST REPORT IS DUE 15 DAYS AFTER FAT. THE GOVERNMENT HAS 45 DAYS TO APPROVE/DISAPPROVE THE TEST REPORT.

A-21. Defense Priority and Allocations System (DPAS):

This is a DO DPAS rated order, and you are required to notify DLA within 15 days of receipt of order if the rated order cannot be fulfilled as written. This includes conflicting rated order schedules. If no response is received during the required response time, the contractor self-attests order acceptance as is.

A-22. FOR CONTRACTORS USING THE PROPRICER SYSTEM:

The original unedited ProPricer system generated Excel file is hereby requested. In Excel Workbook format (.xlsx) provide a ProPricer system generated "Detail Cost Breakdown" report, with "Export Full Pricing" set to "Annual". This Excel file shall be a full working cost model containing the original columns, formulas, and worksheets only. Do not modify the ProPricer system generated Excel file in any manner. Excel tabs to include:

- 1) P-Sheet (needed at minimum)
- 2) Direct Rates
- 3) Indirect Rates
- 4) CERs (if applicable)
- 5) CER Factors (if applicable)

A-23. Long Lead Time and or Long Term Contracts

FOR LONG LEAD TIME ITEMS AND/OR LONG TERM CONTRACTS, THE PARTIES RECOGNIZE THERE IS A RISK THAT PART(S) OR COMPONENT(S) REQUIRED FOR PERFORMANCE OF THE CONTRACT/PURCHASE ORDER MAY BECOME UNAVAILABLE DUE TO OBSOLESCENCE. UPON RECEIPT OF THE CONTRACT/PURCHASE ORDER,

Name of Offeror or Contractor: YULISTA INTEGRATED SOLUTIONS, LLC

CONTRACTOR IS RESPONSIBLE FOR VERIFYING ITS SOURCES OF SUPPLY. IF AT ANY TIME DURING THE COURSE OF PERFORMANCE CONTRACTOR BECOMES AWARE THAT IT IS UNABLE TO PROCURE A PART OR COMPONENT NECESSARY TO FULFILL THE REQUIREMENTS OF THE CONTRACT, THE CONTRACTOR SHALL NOTIFY THE CONTRACTING OFFICER IN WRITING WITHIN THIRTY DAYS. NOTIFICATION SHALL INCLUDE CONTRACTORS RECOMMENDATION FOR CORRECTION OF THE PROBLEM, IF POSSIBLE, WITH ESTIMATED COST AND SCHEDULE IMPACT, IF ANY. THE CONTRACTING OFFICER WILL DETERMINE THE APPROPRIATE COURSE OF ACTION AND PROVIDE DIRECTION TO THE CONTRACTOR. IN NO EVENT WILL CONTRACTOR PROCEED WITH IMPLEMENTATION OF ITS RECOMMENDATION WITHOUT WRITTEN DIRECTION FROM THE CONTRACTING OFFICER. AT THE SOLE DISCRETION OF THE CONTRACTING OFFICER, THE CONTRACT MAY BE TERMINATED IN WHOLE OR IN PART, AS APPROPRIATE.

- A-24. OZONE DEPLETING SUBSTANCES
- (a) In accordance with Section 326 of P.L. 102-484, the Government is prohibited from awarding any contract which includes a specification or standard that requires the use of a Class I ozone-depleting substance (ODS) identified in Section 602(a) of the Clean Air Act, (42 U.S.C. 767a(1), or that can be met only through the use of such a substance unless such use has been approved, on an individual basis, by a senior acquisition official who determines that there is no suitable substitute available.
- (b) To comply with this statute, the Government has conducted a best effort screening of the specifications and standards associated with this acquisition to determine whether they contain any ODS requirements. To the extent that ODS requirements were revealed by this review they are identified below with the disposition determined in each case.
- (c) If offerors possess any special knowledge about any other ODSs required directly or indirectly at any level of contract performance, the U.S. Army would appreciate if such information was surfaced to the Contracting Officer for appropriate action. To preclude delay to the procurement, offerors should provide any information as soon as possible after release of the solicitation and prior to the submission of offers to the extent practicable. It should be understood that there is no obligation on offerors to comply with this request and that no compensation can be provided for doing so.

| ODS Identified | Specification/Standard | Disposition |
|----------------|------------------------|-------------|
| N/A            | N/A                    | N/A         |

- A-25. Product Quality Deficiency Reports (PQDRs)
- The Product Quality Deficiency Report Program (Army Regulation 702-7) will be used when contractors: 1) deliver deficient items or 2) receive deficient items from a DoD supply chain in support of Army requirements. When requested, the Contractor shall assist the cognizant Contract Administration Office in evaluating PQDRs and exhibits for defects reported on items manufactured under this contract to determine the root cause for deficiencies. Corrective action and Preventative Action to preclude recurrence of discrepancies shall be an integral part of the Contractor's Quality Program. These defects may be reported from any DoD activity that discovers a defective item.
- A-26. FOR ALL POST INQUIRIES PLEASE SUBMIT TO:  
DLA HSV POSTAWARD TEAM  
5206 MARTIN ROAD  
REDSTONE ARSENAL 52898  
DLAHSVMSLPOSTAWARD@DLA.MIL

|                                                                         |                                                                                                         |                            |
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| <b>CONTINUATION SHEET</b>                                               | <b>Reference No. of Document Being Continued</b><br>SPRRA2-26-P-0005<br><b>PIIN/SIIN</b> <b>MOD/AMD</b> | <b>Page</b> 5 <b>of</b> 50 |
| <b>Name of Offeror or Contractor:</b> YULISTA INTEGRATED SOLUTIONS, LLC |                                                                                                         |                            |

\*\*\* END OF NARRATIVE A0001 \*\*\*

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Name of Offeror or Contractor: YULISTA INTEGRATED SOLUTIONS, LLC

| ITEM NO | SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | QUANTITY | UNIT | UNIT PRICE      | AMOUNT       |
|---------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|-----------------|--------------|
| 0001    | SUPPLIES OR SERVICES AND PRICES/COSTS<br><br>CIRCUIT CARD ASSEMB<br>NSN: 5998-01-563-7794<br>Mfr CAGE: 18876<br>Mfr Part Number: 13589523                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |          |      |                 |              |
| 0001AA  | <p data-bbox="264 598 714 619"><u>CONTRACTOR TESTED FIRST ARTICLE QUANTITY</u></p> <p data-bbox="264 678 760 829">COMMODITY NAME: CIRCUIT CARD ASSEMB<br/>CLIN CONTRACT TYPE:<br/>Firm Fixed Price<br/>PRON: D14F0264D1 PRON AMD: 03 ACRN: AA<br/>AMS CD: SM2B1100000<br/>PSC: 5998</p> <p data-bbox="264 888 747 1039"><u>Packaging and Marking</u><br/>PACKAGING/PACKING/SPECIFICATIONS:<br/>MIL-STD-129 MARKINGS SHALL APPLY<br/>UNIT PACK: 001 INTERMEDIATE PACK: 000<br/>LEVEL PRESERVATION: Military<br/>LEVEL PACKING: B</p> <p data-bbox="264 1077 803 1119">ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT</p> <p data-bbox="264 1157 714 1199">MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES)</p> <p data-bbox="264 1236 414 1333">WT [1.5 LBS]<br/>LN [9.3 IN]<br/>WD [6.3 IN]<br/>DP [3.0 IN]</p> <p data-bbox="264 1392 792 1465">THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY:</p> <p data-bbox="264 1503 414 1787">JI/A/MP [GX]<br/>JII/CD [1]<br/>JIII/PM [00]<br/>JIV/WM[K3]<br/>JV/CD [LT]<br/>JVI/CT [A]<br/>JVII/UC [NS]<br/>JVII/IC [00]<br/>JIX/A/PK [F]<br/>JX/SM [39]<br/>JVIIIA/OPI [M]</p> | 1        | EA   | \$ 33,419.70000 | \$ 33,419.70 |

| ITEM NO | SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | QUANTITY | UNIT | UNIT PRICE      | AMOUNT       |
|---------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|-----------------|--------------|
|         | (End of narrative D001)<br><br>Inspection and Acceptance<br>INSPECTION: Origin      ACCEPTANCE: Origin<br>Government Approval/Disapproval Days: 30<br><br>Deliveries or Performance<br>DOC                          SUPPL<br>REL CD    MILSTRIP    ADDR    SIG CD    MARK FOR    TP CD<br>001 W31G3H4276A001 W90BTD    J                          2<br>DEL REL CD         QUANTITY         DEL DATE<br>001                          1                          22-APR-2027<br><br>FOB POINT: Destination<br><br>SHIP TO:<br>(W90BTD)    SR W0H9 US ARMY AVN & MISSLES CMD<br>AMCOM FLEET MGT CENTER AFMC<br>HOLBROOK RD BLDG 722<br>FORT BLISS, TX, 79916-5801<br><br>CONTRACT/DELIVERY ORDER NUMBER<br>SPRRA2-26-P-0005/0000 |          |      |                 |              |
| 0001AB  | Production Quantity<br><br>COMMODITY NAME: CIRCUIT CARD ASSEMB<br>CLIN CONTRACT TYPE:<br>Firm Fixed Price<br>PRON: D14F0264D1 PRON AMD: 03 ACRN: AA<br>AMS CD: SM2B1100000<br>PSC: 5998<br><br>Packaging and Marking<br>PACKAGING/PACKING/SPECIFICATIONS:<br>MIL-STD-129 MARKINGS SHALL APPLY<br>UNIT PACK: 001 INTERMEDIATE PACK: 000<br>LEVEL PRESERVATION: Military<br>LEVEL PACKING: B<br><br>ALL WOOD PACKAGING MATERIAL (WPM) MUST BE ISPM-15 COMPLAINT<br><br>MAXIMUM UNIT PACKAGE WEIGHT (POUNDS) AND SIZE (INCHES)<br><br>WT [1.5 LBS]<br>LN [9.3 IN]<br>WD [6.3 IN]<br>DP [3.0 IN]                                                                                                                                  | 3        | EA   | \$ 29,464.97000 | \$ 88,394.91 |

| ITEM NO | SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | QUANTITY | UNIT | UNIT PRICE   | AMOUNT       |
|---------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|--------------|--------------|
|         | <p>THE FOLLOWING MIL-STD-2073-1, APPENDIX J CODES SHALL APPLY:</p> <p>J I/A/M P [G X]<br/>J II/C D [1]<br/>J III/P M [00]<br/>J IV/W M[K 3]<br/>J V/C D [L T]<br/>J VI/C T [A]<br/>J VII/U C [N S]<br/>J VII/I C [00]<br/>J IX/A/P K [F]<br/>J X/S M [39]<br/>J VIII A/O P I [M]</p> <p>(End of narrative D001)</p> <p><u>Inspection and Acceptance</u><br/>INSPECTION: Origin      ACCEPTANCE: Origin</p> <p><u>Deliveries or Performance</u><br/>DOC SUPPL<br/><u>REL CD</u>    <u>MILSTRIP</u>    <u>ADDR</u>    <u>SIG CD</u>    <u>MARK FOR</u>    <u>TP CD</u><br/>001 W31G3H4276A001 W90BTD J 2<br/><u>DEL REL CD</u>         <u>QUANTITY</u>                  <u>DEL DATE</u><br/>001                      3                      07-JUN-2027</p> <p>FOB POINT: Destination</p> <p>SHIP TO:<br/>(W90BTD) SR W0H9 US ARMY AVN &amp; MISSLES CMD<br/>AMCOM FLEET MGT CENTER AFMC<br/>HOLBROOK RD BLDG 722<br/>FORT BLISS, TX, 79916-5801</p> <p><u>CONTRACT/DELIVERY ORDER NUMBER</u><br/>SPRRA2-26-P-0005/0000</p> |          |      |              |              |
| 0001AC  | <p><u>FIRST ARTICLE TEST REPORT</u></p> <p>COMMODITY NAME: CIRCUIT CARD ASSEMB<br/>CLIN CONTRACT TYPE:<br/>Firm Fixed Price<br/>PSC: 5998</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | 1        | EA   | \$ ** NSP ** | \$ ** NSP ** |



| ITEM NO    | SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | QUANTITY | UNIT        | UNIT PRICE | AMOUNT |  |  |        |          |      |        |          |       |     |  |  |  |  |   |            |          |  |          |  |  |     |   |  |             |  |  |  |  |  |  |
|------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-------------|------------|--------|--|--|--------|----------|------|--------|----------|-------|-----|--|--|--|--|---|------------|----------|--|----------|--|--|-----|---|--|-------------|--|--|--|--|--|--|
|            | <p>Packaging and Marking</p> <p>FIRST ARTICLE TEST REPORT WILL BE SENT ELECTRONICALLY<br/>TO: DLAHSVPOSTAWARDTEAM@DLA.MIL<br/>IF THE FILE IS TOO LARGE OR ENCRYPTION IS NEEDED, A<br/>GOOD SAFE LINK WILL BE SENT TO YOU FOR UPLOAD USING<br/>HTTPS://SAFE.APPS.MIL/ PLEASE USE THE<br/>DLAHSVPOSTAWARDTEAM@DLA.MIL EMAIL ADDRESS TO REQUEST THE LINK".</p> <p>(End of narrative D001)</p> <p>Inspection and Acceptance</p> <p>INSPECTION: Origin      ACCEPTANCE: Destination</p> <p>Deliveries or Performance</p> <table><tr><td>DOC</td><td colspan="5">SUPPL</td></tr><tr><td>REL CD</td><td>MILSTRIP</td><td>ADDR</td><td>SIG CD</td><td>MARK FOR</td><td>TP CD</td></tr><tr><td>001</td><td></td><td></td><td></td><td></td><td>3</td></tr><tr><td>DEL REL CD</td><td colspan="2">QUANTITY</td><td colspan="3">DEL DATE</td></tr><tr><td>001</td><td colspan="2">1</td><td colspan="3">22-APR-2027</td></tr></table> <p>FOB POINT: Destination</p> <p>SHIP TO:</p> <p>(W90BW) XR W1DF CCDC AV MISSILE CENTER<br/>BLDG 5400 FOWLER RD<br/>CENTER SUPPORT FACILITIES LOGISTICS<br/>REDSTONE ARSENAL, AL, 35898-5000</p> <p>CONTRACT/DELIVERY ORDER NUMBER</p> <p>SPRRA2-26-P-0005/0000</p> | DOC      | SUPPL       |            |        |  |  | REL CD | MILSTRIP | ADDR | SIG CD | MARK FOR | TP CD | 001 |  |  |  |  | 3 | DEL REL CD | QUANTITY |  | DEL DATE |  |  | 001 | 1 |  | 22-APR-2027 |  |  |  |  |  |  |
| DOC        | SUPPL                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |          |             |            |        |  |  |        |          |      |        |          |       |     |  |  |  |  |   |            |          |  |          |  |  |     |   |  |             |  |  |  |  |  |  |
| REL CD     | MILSTRIP                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | ADDR     | SIG CD      | MARK FOR   | TP CD  |  |  |        |          |      |        |          |       |     |  |  |  |  |   |            |          |  |          |  |  |     |   |  |             |  |  |  |  |  |  |
| 001        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |          |             |            | 3      |  |  |        |          |      |        |          |       |     |  |  |  |  |   |            |          |  |          |  |  |     |   |  |             |  |  |  |  |  |  |
| DEL REL CD | QUANTITY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |          | DEL DATE    |            |        |  |  |        |          |      |        |          |       |     |  |  |  |  |   |            |          |  |          |  |  |     |   |  |             |  |  |  |  |  |  |
| 001        | 1                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |          | 22-APR-2027 |            |        |  |  |        |          |      |        |          |       |     |  |  |  |  |   |            |          |  |          |  |  |     |   |  |             |  |  |  |  |  |  |

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| <b>Name of Offeror or Contractor:</b> YULISTA INTEGRATED SOLUTIONS, LLC |                                                                                                  |                      |

B-1. APPROVED SOURCES:  
CAGE 79K70  
YULISTA INTEGRATED SOLUTIONS, LLC  
8600 ADVANCED GTWY SW  
HUNTSVILLE, AL 35808-1336  
13589523

\*\*\* END OF NARRATIVE B0001 \*\*\*

|                                                                         |                                                                                                         |                      |
|-------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------|----------------------|
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INSPECTION AND ACCEPTANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>  
For DFARS clauses: <https://www.acq.osd.mil/dpapr/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

|   | <u>Regulatory Cite</u> | <u>Title</u>                              | <u>Date</u> |
|---|------------------------|-------------------------------------------|-------------|
| 1 | 52.246-1               | CONTRACTOR INSPECTION REQUIREMENTS        | APR/1984    |
| 2 | 52.246-2               | INSPECTION OF SUPPLIES--FIXED-PRICE       | AUG/1996    |
| 3 | 52.246-15              | CERTIFICATE OF CONFORMANCE                | APR/1984    |
| 4 | 52.246-16              | RESPONSIBILITY FOR SUPPLIES               | APR/1984    |
| 5 | 52.246-11              | HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT | DEC/2014    |

(a) The contractor shall comply with the higher-level quality standard(s) listed below.  
ANSI/ISO/ASQ 9001:2015, AS 9100 OR EQUIVALENT, TAILORING: ALL PARAGRAPHS UNDER 8.3 (DESIGN AND DEVELOPMENT OF PRODUCTS AND SERVICES) DO NOT APPLY (b) The contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts in--  
(1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or  
(2) When the technical requirements of a subcontract require--  
(i) Control of such things as design, work operations, in-process control, testing and inspection; or  
(ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.  
(End of clause)

|                                                                         |                                                                                          |                                        |
|-------------------------------------------------------------------------|------------------------------------------------------------------------------------------|----------------------------------------|
| <b>CONTINUATION SHEET</b>                                               | <b>Reference No. of Document Being Continued</b><br>SPRRA2-26-P-0005<br><b>PIIN/SIIN</b> | <b>Page 12 of 50</b><br><b>MOD/AMD</b> |
| <b>Name of Offeror or Contractor:</b> YULISTA INTEGRATED SOLUTIONS, LLC |                                                                                          |                                        |

DELIVERIES OR PERFORMANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>  
For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

|   | Regulatory Cite | Title                                                                                                 | Date     |
|---|-----------------|-------------------------------------------------------------------------------------------------------|----------|
| 1 | 52.211-17       | DELIVERY OF EXCESS QUANTITIES                                                                         | SEP/1989 |
| 2 | 52.242-15       | STOP-WORK ORDER                                                                                       | AUG/1989 |
| 3 | 52.242-17       | GOVERNMENT DELAY OF WORK                                                                              | APR/1984 |
| 4 | 52.247-34       | F.O.B. DESTINATION (JAN 1991)                                                                         | FEB/2006 |
| 5 | 52.247-48       | F.O.B. DESTINATION--EVIDENCE OF SHIPMENT                                                              | FEB/1999 |
| 6 | 52.247-52       | CLEARANCE AND DOCUMENTATION REQUIREMENTS--SHIPMENTS TO DOD AIR OR WATER TERMINAL TRANSSHIPMENT POINTS | FEB/2006 |
| 7 | 52.247-58       | LOADING, BLOCKING, AND BRACING OF FREIGHT CAR SHIPMENTS                                               | APR/1984 |
| 8 | 252.211-7008    | USE OF GOVERNMENT-ASSIGNED SERIAL NUMBERS                                                             | SEP/2010 |
| 9 | 52.211-8        | TIME OF DELIVERY                                                                                      | JUN/1997 |

(a) The Government requires delivery to be made according to the following schedule:

| REQUIRED DELIVERY SCHEDULE |          |                                     |      |
|----------------------------|----------|-------------------------------------|------|
| ITEM NO.                   | QUANTITY | WITHIN DAYS<br>AFTER CONTRACT AWARD |      |
| CLIN 0001AA                | 1 EA     | 285                                 | DAYS |
| CLIN 0001AB                | 3 EA     | 315                                 | DAYS |
| CLIN 0001AC                | 1 EA     | 255                                 | DAYS |

The Government will evaluate equally, as regards time of delivery, offers that propose delivery of each quantity within the applicable delivery period specified above. Offers that propose delivery that will not clearly fall within the applicable required delivery period specified above, will be considered nonresponsive and rejected. The Government reserves the right to award under either the required delivery schedule or the proposed delivery schedule, when an offeror offers an earlier delivery schedule than required above. If the offeror proposes no other delivery schedule, the required delivery schedule above will apply.

| OFFEROR'S PROPOSED DELIVERY SCHEDULE |          |                                          |      |
|--------------------------------------|----------|------------------------------------------|------|
| ITEM NO.                             | QUANTITY | WITHIN DAYS<br>AFTER DATE OF<br>CONTRACT |      |
| CLIN 0001AA                          | 1 EA     | 455                                      | DAYS |
| CLIN 0001AB                          | 3 EA     | 500                                      | DAYS |
| CLIN 0001AC                          | 1 EA     | 455                                      | DAYS |

(b) Attention is directed to the Contract Award provision of the solicitation that provides that a written award or acceptance of offer mailed, or otherwise furnished to the successful offeror, results in a binding contract. The Government will mail or otherwise furnish to the offeror an award or notice of award not later than the day award is dated. Therefore, the offeror should compute the time

|                                                 |                                                                                                                                                                                    |                                           |
|-------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------|
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|-------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------|

**Name of Offeror or Contractor:** YULISTA INTEGRATED SOLUTIONS, LLC

available for performance beginning with the actual date of award, rather than the date the written notice of award is received from the Contracting Officer through the ordinary mails. However, the Government will evaluate an offer that proposes delivery based on the Contractor's date of receipt of the contract or notice of award by adding

- (1) five calendar days for delivery of the award through the ordinary mails, or
  - (2) one working day if the solicitation states that the contract or notice of award will be transmitted electronically. (The term "working day" excludes weekends and U.S. Federal holidays.) If, as so computed, the offered delivery date is later than the required delivery date, the offer will be considered nonresponsive and rejected.
- (End of Clause)

10                      252.211-7003                      ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)                      JAN/2023

(a) Definitions. As used in this clause--

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means

- (1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or
- (2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html> .

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means

- (1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;
- (2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at [http://www.aimglobal.org/?Reg\\_Authority15459](http://www.aimglobal.org/?Reg_Authority15459) .

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html> .

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

|                                                           |                  |
|-----------------------------------------------------------|------------------|
| Contract Line,<br>Subline, or<br>Exhibit Line Item Number | Item Description |
| __ N/A _____                                              | N/A _____        |
| __ N/A _____                                              | N/A _____        |
| __ N/A _____                                              | N/A _____        |

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

| Contract Line,<br>Subline, or<br>Exhibit Line Item Number | Item Description |
|-----------------------------------------------------------|------------------|
| N/A                                                       | N/A              |
| N/A                                                       | N/A              |
| N/A                                                       | N/A              |

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparable as specified in Attachment Number TBD.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number TBD.

(v) Any item not included in paragraphs (c)(1)(i), (ii), (iii), or (iv) of this clause for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology--International symbology specification--Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that--

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology-Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall--

(A) Determine whether to--

- (1) Serialize within the enterprise identifier;
- (2) Serialize within the part, lot, or batch number; or
- (3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

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(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: Original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

- (ii) The issuing agency code--
  - (A) Shall not be placed on the item; and
  - (B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.\*\*
- (4) Issuing agency code (if concatenated unique item identifier is used).\*\*



|                    |                                                                                    |               |
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- (5) Enterprise identifier (if concatenated unique item identifier is used).\*\*
- (6) Original part number (if there is serialization within the original part number).\*\*
- (7) Lot or batch number (if there is serialization within the lot or batch number).\*\*
- (8) Current part number (optional and only if not the same as the original part number).\*\*
- (9) Current part number effective date (optional and only if current part number is used).\*\*
- (10) Serial number (if concatenated unique item identifier is used).\*\*
- (11) Description.

\*\* Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/> .

(2) Embedded items shall be reported by one of the following methods--

- (i) Use of the embedded items capability in WAWF;
- (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/> ; or
- (iii) Via WAWF as a deliverable attachment for exhibit line item number TBD, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

Name of Offeror or Contractor: YULISTA INTEGRATED SOLUTIONS, LLC

CONTRACT ADMINISTRATION DATA

| LINE   | PRON/<br>AMS CD/<br>MIPR/<br>GFEBS ATA | OBLG<br>STAT | JO NO/<br>ACCT ASSIGN | ACRN |    | OBLIGATED<br>AMOUNT |
|--------|----------------------------------------|--------------|-----------------------|------|----|---------------------|
| 0001AA | D14F0264D1<br>SM2B1100000              | 2            |                       | AA   | \$ | 33,419.70           |
| 0001AB | D14F0264D1<br>SM2B1100000              | 2            |                       | AA   | \$ | 88,394.91           |
| TOTAL  |                                        |              |                       |      | \$ | 121,814.61          |

| ACRN  | ACCOUNTING CLASSIFICATION |      |        |        |    | OBLIGATED<br>AMOUNT |
|-------|---------------------------|------|--------|--------|----|---------------------|
| AA    | 97 X4930AC9F 6X           | 26K6 | S01021 | W31G3H | \$ | 121,814.61          |
| TOTAL |                           |      |        |        | \$ | 121,814.61          |

| LINE   | ACRN | EDI/SFIS | ACCOUNTING CLASSIFICATION |        |                       |               |
|--------|------|----------|---------------------------|--------|-----------------------|---------------|
| 0001AA | AA   | 97       | 0X0X4930AC9F              | S01021 | 6X0000SM2B110000026K6 | S01021 W31G3H |
| 0001AB | AA   | 97       | 0X0X4930AC9F              | S01021 | 6X0000SM2B110000026K6 | S01021 W31G3H |

| Regulatory Cite | Title                                              | Date     |
|-----------------|----------------------------------------------------|----------|
| 1 252.232-7006  | WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023) | JAN/2023 |

(a) Definitions. As used in this clause

- "Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.
- "Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).
- "Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.
- "Payment request" and "receiving report" are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.
- (b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.
- (c) WAWF access. To access WAWF, the Contractor shall
- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov> ; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.
- (d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>
- (e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.
- (f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

|                                                                         |                                                                                                         |                      |
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- (1) Document type. The Contractor shall submit payment requests using the following document type(s):
- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
  - (ii) For fixed price line items
  - (A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.
- INVOICE AND RECEIVING COMBO
- (B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.
- I/A: SOURCE  
FOB: DESTINATION
- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
  - (iv) For performance based payments, submit a performance based payment request.
  - (v) For commercial financing, submit a commercial financing request.
- (2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.
- [Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]
- (3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

| Routing Data Table*       |                            |
|---------------------------|----------------------------|
| Field Name in WAWF        | Data to be entered in WAWF |
| Pay Official DoDAAC       | HQ0338                     |
| Issue By DoDAAC           | SPRRA2                     |
| Admin DoDAAC**            | S0107A                     |
| Inspect By DoDAAC         | S0107A                     |
| Ship To Code              | W90BTD (CLIN 0001AA)       |
| Ship To Code              | W90BTD (CLIN 0001AB)       |
| Ship From Code            | 79K70                      |
| Mark For Code             | N/A                        |
| Service Approver (DoDAAC) | N/A                        |
| Service Acceptor (DoDAAC) | N/A                        |
| Accept at Other DoDAAC    | N/A                        |
| LPO DoDAAC                | N/A                        |
| DCAA Auditor DoDAAC       | N/A                        |
| Other DoDAAC(s)           | N/A                        |

- (4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.
- (5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.
- (g) WAWF point of contact.
- (1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

ACO  
JEFFREY BRIDGE  
JEFFREY.BIDGE.CIV@MAIL.MIL

|                                                                         |                                                                                                         |                      |
|-------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------|----------------------|
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256-850-7321

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

|                                                                         |                                                                                          |                                        |
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SPECIAL CONTRACT REQUIREMENTS  
WOOD PACKING MATERIALS REQUIREMENTS:

- A. Wood packaging material (WPM) means wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frame and cleats. The definition excludes materials that have undergone a manufacturing process, such as corrugated fiberboard, plywood, particleboard, veneer, and oriented strand board (OSD).
- B. All Wood Packaging Material (WPM)) acquired by DOD must meet requirements of International Standards for Phytosanitary Measures (ISPM) 15, "Guidelines for Regulating Wood Packaging Materials International Trade." DOD shipments inside and outside of the United States must meet ISPM 15 whenever WPM is used to ship DOD cargo.
- (1) All WPM shall comply with the official quality control program for heat treatment (HT) or kiln dried heat treatment (KD HT) in accordance with American Lumber Standard Committee, incorporated (ALSC) Wood Packaging Material Program and WPM Enforcement Regulations (see <http://www.alsc.org/>).
- (2) All WPM shall include certification/quality markings in accordance with the ALSC standard. Marking shall be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides of the pallet and be contrasting and clearly visible. All containers shall be marked on a side other than the top or bottom, contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp.
- C. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment at entry. The Agency reserves the right to recoup from the Contractor any remediation costs incurred by the Government.
- D. Replacement Preservative for Pentachlorophenol
- If packaging requirements of this contract specify the use of wood products and a preservative is required, Pentachlorophenol, commonly referred to as "Penta" or "PCP" is prohibited. Replacement preservatives are 2 percent copper naphthenate, 3 percent zinc naphthenate or 1.8 percent copper 8 quinolinolate.
- (1) Heat Treatment: Boxes/pallets and any wood used as inner packaging made of non-manufactured wood shall be heat-treated. All non-manufactured wood used in packaging shall be heat treated to a core temperature of 56 degrees Celsius for a minimum of 30 minutes. The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall be affiliated with an inspection agency accredited by the board of review of the American Lumber Standard Committee. The box/pallet manufacturer and the manufacturer of wood used as inner packaging shall ensure traceability to the original source of heat treatment.
- (2) Marking: Each box/pallet shall be marked to show the conformance to the International Plant Protection Convention Standard. The quality mark shall be placed on both ends of the outer packaging, between the end cleats or end battens: on two sides of the pallet. Foreign manufacturers shall have the heat treatment of non-manufactured wood process verified in accordance with their National Plant Protection Organization's compliance program. In addition, wood used as dunnage for blocking and bracing shall be ordered with ALSC certified marking for dunnage or the markings may be applied locally at two foot intervals.

ELECTRONIC FABRICATION: REQUIREMENTS FOR ELECTRICAL AND ELECTRONIC ASSEMBLIES (AVN & MSL):

1. Notwithstanding any other provision contained in any part of this contract to the contrary, the minimum requirements/standards for soldering electrical and electronic assemblies shall be the non-military joint industry standard, ANSI/J-STD-001, Class 3. The revision of ANSI/J-STD-001 in effect on the effective date of the contract shall govern the hardware produced hereunder. A copy of ANSI/J-STD-001 may be obtained from the Institute for Interconnecting and Packaging Electronic Circuits (IPC), 3000 Lakeside Drive, 105N, Bannockburn, IL, 60015, <https://www.ipc.org>.
2. The contractor shall establish and maintain an electronic/electrical parts control program and shall maintain and make available to the Government records and data which will provide visibility and traceability of all parts used in the production of the equipment under this contract. This selection of parts shall not be construed to relieve the contractor of meeting specified performance of the end item in which the part is used.
3. The Technical Data Package (TDP) shall serve as the baseline Program Parts Selection List (PPSL) and the parts and sources listed therein are the standard parts and sources. A Non-Standard Part is defined as a part or source other than that cited in the PPSL. When the contractor desires to use a part or source other than those cited in the PPSL, the change must be approved by the Government via a Request for Deviation (RFD) as defined elsewhere in this contract. Failure on the part of the contractor to submit such RFDs may result in the replacement of the nonstandard part with the standard part by the Government at the contractor's expense for all affected items.
4. The contractor shall provide objective evidence such as form, fit, function, and interchangeability data that shows the proposed part complies with the requirements of applicable parts documentation. The RFD shall detail the technical justification for the use of the part and advantages of the nonstandard part, if any. Compare the nonstandard part to the standard part whose characteristics are nearest to those required for the application. Include, when applicable:
- a. Part Number and Source
  - b. Size and weight data.
  - c. Electrical and mechanical characteristics
  - d. Reliability (with data if requested)
  - e. Availability of the standard part (delivery schedules, still available etc.)
  - f. Supplemental data such as existing control drawings, specifications, vendor data sheets, and other pertinent data. Data need not be furnished for nonstandard parts covered by documents listed in the Department of Defense Index of Specifications and Standards (DoDISS)

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or Standardized Military Drawings (SMD).

5. The Contractor shall maintain a Lead Free Control Plan (LFCP) and make available to the Government upon request. The requirement for a Lead Free Control Plan shall be flowed down to suppliers of equipment that may include lead-free materials. The LFCP shall follow the guidelines set forth in GEIA-STD-0005-1, "Performance Standard for Aerospace and High Performance Electronic Systems Containing Lead-Free Solder" or its equivalent. In addition, the LFCP shall also include tin whisker mitigation plans in accordance with GEIA-STD-0005-2, "Standard for Mitigating the Effects of Tin Whiskers in Aerospace and High Performance Electronic Systems" or its equivalent, at control level 2C or equivalent. The Contractor should include in the LFCP any special design considerations, manufacturing process controls, test and qualification requirements, quality inspection and screening, marking and identification, maintenance and repair processes, and other steps taken to mitigate risk.

6. The Contractor shall prepare, or update existing, Counterfeit Risk Management Plan and make available to the Government upon request. The Plan shall meet the requirements of SAE AS5553 for electronic items. The Contractor shall procure parts from original manufacturers or the original manufacturers' franchised distributors. Contractors shall report counterfeits and suspected counterfeits to the Government and in the Government Industry Data Exchange Program (GIDEP), in accordance with the GIDEP Operations Manual, S0300-BT-PRO-010.

ENGINEERING CHG PROPOSAL, VALUE ENG CHG PROPOSAL, REQUEST FOR VARIANCE, ENG RELEASE RECORDS, NOTICE OF REVISION, AND SPECIFICATION CHG NOTICE PREPARATION AND SUBMISSION INSTRUCTIONS:

1. Contractor initiated Engineering Change Proposals (ECPs), Value Engineering Change Proposals (VECPs), and Request for Variance (RFVs), collectively referred to as "proposals", shall be prepared, submitted and distributed in accordance with paragraphs 2, 3 and 4 below except as specified in paragraph 5 below.
2. Format.
  - a. Class I ECPs require the "Long Form Procedure" for documenting the change and describing the effects of the change on the suitability and supportability of the Configuration Item (CI). Class I ECPs should be limited to those that are necessary or offer significant benefit to the Government. Class I ECPs are those that affect the performance, reliability, maintainability, survivability, weight, balance, moment of inertia, interface characteristics, electromagnetic characteristics, or other technical requirements in the specifications and drawings. Class I ECPs also include those changes that affect Government Furnished Equipment, safety, compatibility, retrofit, operation and maintenance manuals, interchangeability, substitutability, replaceability, source control specifications and drawings, costs, guarantees or warranties, deliveries, or schedules. Class II ECPs are those that do not affect form, fit and function, cost, or schedule of the system CI and do not meet the other criteria described above for Class I ECPs.
  - b. Long Form Procedure: Class I changes to the CI require that DD Form 1692, pages 1 through 7 (as applicable), be prepared. Use of this procedure assures that all effects of the change on the CI are properly addressed and documented to the necessary detail to allow proper evaluation of the proposed change.
  - c. Short Form Procedure: ECPs and VECPs, which meet the requirements of Class II ECPs, shall be prepared using DD Form 1692 (page 1 only). Supplemental pages may be used with the form as necessary. The responsible Defense Contract Management Agency (DCMA) Contract Management Office (CMO) will validate data entries in Block 5 "Class of ECP", Block 6 "Priority", and Block 8 "Justification Codes."
  - d. The Contractor shall not manufacture items for acceptance by the Government that incorporate a known departure from requirements, unless the Government has approved an RFV. RFVs shall be prepared using DD Form 1694.
  - e. Each ECP and RFV shall be accompanied by a written and signed evaluation prepared by the responsible Defense Contract Management Agency (DCMA) technical representative. The DCMA written evaluation shall be considered part of the ECP/RFV proposal.
  - f. Classification of RFVs.
    - (1) Major RFVs. RFVs written against CIs shall be designated as major when the RFV consists of acceptance of an item having a nonconformance with contract or configuration documentation involving health; performance; interchangeability; reliability; survivability; maintainability; effective use or operation; weight; appearance (when a factor); or when there is a departure from a requirement classified as major in the contractual documentation.
    - (2) Critical RFVs. RFVs written against CIs shall be designated as critical when the RFV consists of acceptance of an item having a nonconformance with contract or configuration documentation involving safety or when there is a departure from a requirement classified as critical in the contractual documentation.
    - (3) Minor RFVs. RFVs written against CIs shall be designated as minor when the RFV consists of acceptance of an item having a nonconformance with contract or configuration documentation which does not involve any of the factors listed above in paragraphs f(1) or g(2), or when there is a departure from a requirement classified as minor in the contractual documentation.
  - g. Proposals shall include sufficient technical data to describe all changes from existing contract requirements.
  - h. Proposals shall include sufficient justification for making the change, including a statement of contract impact, if the change is not authorized.
  - i. Proposals for ECPs shall set forth a "not to exceed" price and delivery adjustment acceptable to the Contractor if the Government subsequently approves the proposal. If approved, the equitable increase shall not exceed this amount.
  - j. Times allowed for technical decisions for ECP and RFV proposals will be worked out via mutual agreement between the Contractor and the Government.
  - k. Proposals for VECPs shall set forth a "not less than" price and delivery adjustment acceptable to the Contractor if the Government subsequently approves the proposal. If approved, the savings shall not be less than this amount.
  - l. The Contractor shall utilize DD Form 2617, "Engineering Release Record" (ERR) to release new or revised configuration

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documentation to the Government for approval.

m. The Contractor shall utilize DD Form 1695, "Notice of Revision" (NOR) to describe the exact change(s) to configuration documentation specified as a data requirement in the contract. The Contractor shall describe the change using sub-sections entitled "WAS" to describe the current contractual technical requirement and "IS" to describe the proposed new requirement.

3. Submittal. The preferred method of submittal is digitally as a single file in Adobe Acrobat Portable Document Format (PDF). Unless otherwise specified, alternate methods of submittal shall be proposed to and authorized by the PCO prior to submittal. If the hardcopy method is requested and approved, the Contractor shall submit two (2) copies of each proposal to the responsible Administrative Contracting Officer (ACO). One (1) copy of each proposal shall be returned to the Contractor within (5) working days after receipt by the ACO, stating whether or not the proposal is in compliance with this provision. Any unresolved differences between the ACO and the Contractor concerning ECPS, VECPS, or RFVs will be submitted to the PCO for resolution.

4. Distribution.

a. Electronic Distribution. The preferred method of distribution for unclassified is through the email or DOD safe site (<https://safe.apps.mil>) addressed to the PCO. Classified material shall be distributed via SIPERNET or by classified email as determined by the PCO. Microsoft Word is required for use with the transmittal letter (E-mail). Required forms will be attached to the E-mail. All forms may be obtained from the Office of the Secretary of Defense Executive Services Directorate DoD Directives Division website (<http://www.esd.whs.mil/DD/>) via the DoD Forms menu. The forms are provided in fillable Adobe Acrobat Portable Document Format (PDF). In order to access and use the forms, the user must have the "Adobe Acrobat" software installed on their computer. Drawings may be scanned and sent as an attachment. In some cases, because of size, drawings may have to be sent as hard copies or sent under special electronic instructions provided by the PCO.

5. Alternate Format, Submittal or Distribution Process. Proposals may be prepared in a different format, submitted using a different submittal process or distributed in a different manner than specified in paragraphs 2, 3 and 4 above, so long as the alternate approach is in accordance with a Government approved configuration management plan governed by this contract or the PCO authorizes the alternate format, submittal, or distribution process.

6. Government Acceptance. Acceptance of a proposal by the Government shall be affected by the issuance of a change order or execution of a supplemental agreement incorporating the proposal into the contract unless the PCO authorizes another method of acceptance. The Government will notify the Contractor in writing if a proposal is determined to be unacceptable.

REVISIONS TO DRAWINGS/PART NUMBERS REQUIREMENT (AVN & MSL):

(a) Sources in receipt of this solicitation are requested, at no cost to the Government, to immediately notify the Contracting Officer if they are aware of any change(s)/revision(s) to the drawing(s) or part number(s) in this solicitation which have been approved by the Government for implementation. Notification of part number changes shall be supported by data which indicates the type of change, approving authority as required by ANSI EIA 649 MIL-STD-973 and date and method of submittal of provisioning documentation and drawings. If complete data package has not been previously provided, the contractor shall, at no direct cost to the Government, immediately submit applicable drawings, along with a copy of the approval change authority, to the Contracting Officer, at the office symbol and mailing address listed in the "ISSUED BY" block on page one (1) of this document. The minimum acceptable data includes the next higher assembly and the item of Supply Detail Drawings which will allow provisioning, National Stock Number assignment and updating of AMCOM's data records.

(b) The contractor hereby verifies previous contractual submission of technical data:  
Contract No.:

Contractor:

Explanation of Data Rights:

(c) The Government is not by this request soliciting, nor is the Government liable for cost incurred by the offeror in preparing or developing modifications, deviations, waivers, or other changes to drawings or part number(s). Furthermore, this request does not authorize changes to the drawing(s) or part number(s) for this acquisition, another contract, or for any other purpose. Offerors performing any contract awarded as a result of this solicitation must comply with the drawing(s) and specifications as set forth herein, unless this solicitation is amended or any resulting contract is modified by the Contracting Officer.

(d) All proposed part number changes shall be submitted pursuant to the requirements of the requirement entitled, " ENGINEERING CHG PROPOSAL, VALUE ENG CHG PROPOSAL, REQUEST FOR VARIANCE, ENG RELEASE RECORDS, NOTICE OF REVISION, AND SPECIFICATION CHG NOTICE PREPARATION AND SUBMISSION INSTRUCTIONS"

BAR CODE MARKINGS:

Bar Code Markings are required in accordance with the latest revision of MIL-STD-129 and ISO/IEC 16388 - Information Technology - Automatic Identification and Data Capture Techniques - Bar Code Symbology Specification - Code 39.

POINT OF PRESERVATION, PACKAGING, PACKING AND MARKING OF SUPPLIES (AVN & MSL)  
Preservation, packaging, packing, and marking of supplies will be performed at the following location: (If other than the location set forth in block 9, page 1 of this purchase order):  
N/A

|                                                                         |                                                                                          |                                        |
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N/A  
N/A

FIRST ARTICLE TEST - CONTRACTOR TESTED - ADDITIONAL REQUIREMENTS (AVN & MSL):

a. The first article shall be inspected and tested by the contractor in accordance with the requirements of the contract. The first article shall be representative of items to be manufactured using the same processes and procedures and at the same facility as contract production. All parts and materials, including packaging and packing, shall be obtained from the same source of supply as will be used during regular production. All components, subassemblies, and assemblies in the first article sample shall have been produced by the Contractor (including subcontractors) using the technical data package applicable to this procurement. If applicable, the Contractor or its subcontractor shall produce or demonstrate proof that any fixtures, tool masters, jigs, or similar devices used in the inspection and/or testing of the first article have been subjected to an initial inspection, or other suitable means supporting their accuracy, before being used in the manufacturing/production process.

b. At a minimum, first article inspection and test shall include:

(1) A 100% inspection (or as set forth in relevant specifications) of all physical and functional characteristics, to include but not limited to, any drawings, as well as any other requirements which may be set forth by other applicable specifications, or in any technical data packages, and/or any other special/functional testing as set forth in this contract;

(2) A review of parts, components and/or assemblies for compliance to identification markings;

(3) A review of packaging for compliance to preservation, packaging, packing, and marking requirements;

(4) A review for compliance within the Technical Data Package or as otherwise stated in this contract that approved manufacturing sources have been used for special processes, controlled parts, components, and/or assemblies;

(5) The verification through documented evidence that all inspection, testing, measuring and diagnostic equipment used in the inspection/test of the first article piece(s) have been subjected to an initial inspection, or other means supporting their accuracy, and are maintained in accordance with contractual calibration standards.

c. Unless otherwise specified in the contract, the contractor shall NOT retain the first article provided under this contract to serve as the manufacturing standard of acceptance.

d. A First Article Test Report (FATR) shall be prepared and submitted in accordance with FAR 52.209-3. The report will include all necessary documentation to demonstrate and support full compliance with the first article inspection and test requirements as set forth in this contract (including supplier's and vendor's inspection records and certifications, when applicable). The FATR shall include actual inspection and test results to include all measurements, recorded test data, and certifications (if applicable) keyed to each drawing, specifications and/or Quality Assurance Provision (QAP) requirement and identified by each individual QAP characteristic, drawing/specification characteristic and unlisted characteristic. The FATR shall contain sufficient narrative content, technical data, illustrations or photographic evidence, and an objective determination by the contractor to allow the designated Government representative to determine that the First Article test was successfully completed.

e. Additional first article testing may be ordered by the Contracting Officer in writing when (i) a major change is made to the technical data, (ii) whenever there is a lapse in production for a period in excess of 3 years, or (iii) whenever a change occurs in place of performance, manufacturing locations or processes, material used, drawing, specification or source of supply. When conditions (i), (ii), or (iii) above occurs, the Contractor shall notify the Contracting Officer so that a determination can be made concerning the need for the additional first article sample or portion thereof, and instructions provided concerning the submission, inspection, and notification of results. Should the Government require additional first article testing the Contractor may be entitled to an equitable adjustment.

DEFENSE PRIORITY AND ALLOCATIONS SYSTEM (DPAS) RATED AWARDS

Defense Priorities and Allocations System (DPAS) Rated Awards (JUNE 2025)  
A DPAS rated order indicates the priority the contractor must give to the performance of the award. There are two priority ratings: "DX" and "DO". All "DX" rated orders have equal priority with each other and take preference over "DO" rated orders and unrated orders. All "DO" rated orders have equal priority with each other and take preference over unrated orders. (see 15 CFR 700.11 and DoDM 4400.1-M).  
Mandatory Contractor Performance Scheduling  
A contractor must schedule operations, including the acquisition of all needed production items, in a timely manner to satisfy the delivery requirements of each DPAS rated order. Additionally, contractors are required to use DPAS rated orders with their U.S. suppliers to obtain items needed to fill rated orders (15 CFR 700.15). Contractors may also use DPAS rated orders to obtain replacements of inventoried items used to fill rated orders (see 15 CFR 700.17(b)). Modifying production or delivery schedules is necessary only when required delivery dates for a rated order cannot otherwise be met. Since "DX" indicates the highest rated order, the manufacturer will



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schedule its production before processing other lower or unrated orders. "DX" rated orders must be given production preference over "DO" rated orders and unrated orders if necessary to meet required delivery dates, even if this requires the diversion of items being processed or ready for delivery against unrated orders. Similarly, "DO" rated orders must be given preference over unrated orders. If an accepted rated order of equal priority status conflicts with other accepted rated orders of equal priority status, the contractor must prioritize the rated orders in the sequence in which the rated orders are to be delivered or performed (see 15 CFR 700.14).

Contractor Acceptance of a DPAS rated order:  
[Contractors receiving an award that includes a DPAS rating shall advise DLA via the post award mailbox (DLAHSVPostAwardTeam@dla.mil) , if they cannot perform in accordance with the requirements of the applied DPAS rating. When rejecting an order in full, communication to the contracting officer must include a detailed reason for rejection. If the order can be fulfilled at a later date, the contractor must provide, a) the earliest possible delivery date, b) a detailed reason why the awarded delivery date cannot be met (e.g. reason should not simply state a production delay) and, c) an offer to accept the order based on that date. Contractors must advise DLA within fifteen (15) working days after receipt of a "DO" rated order, and within ten (10) working days after receipt of a "DX" rated order if they cannot perform in accordance with the DPAS rating. Contractors that do not contact DLA are self-attesting that they acknowledge receipt of the award and will conform to the DPAS rating requirement. If the prescribed response time has passed and the contractor learns that shipment or performance will be delayed, the contractor is still required to notify DLA immediately.

Special Priority Assistance:  
Preferential scheduling is a must for DPAS rated orders (see 15 CFR 700.14). If a contractor learns that a shipment or performance will be delayed after the allotted response time has passed or any other issue arises that will affect deliveries during the duration of the contract, the contractor is required to notify DLA immediately through the use of Form BIS-999, Special Priorities Assistance (SPA). Deviations from schedules cannot be approved without the completion and submission of this form. Once submitted, DLA and its customers will discuss the SPA for approval. The Department of Commerce requires an approved BIS-999 prior to reprioritizing DPAS rated orders and its schedules (See 15 CFR 700.50). Please contact DLA post award for any SPA questions or concerns.

\*\*\* END OF NARRATIVE H0001 \*\*\*

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Name of Offeror or Contractor: YULISTA INTEGRATED SOLUTIONS, LLC

#### CONTRACT CLAUSES

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

|    | Regulatory Cite | Title                                                                                                                                                        | Date     |
|----|-----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|
| 1  | 52.203-19       | PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS                                                                           | JAN/2017 |
| 2  | 52.204-10       | REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS                                                                                           | JUN/2020 |
| 3  | 52.204-13       | SYSTEM FOR AWARD MANAGEMENT MAINTENANCE                                                                                                                      | OCT/2018 |
| 4  | 52.204-18       | COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE                                                                                                            | AUG/2020 |
| 5  | 52.204-23       | PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)                 | DEC/2023 |
| 6  | 52.209-6        | PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025) | JAN/2025 |
| 7  | 52.209-10       | PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS                                                                                               | NOV/2015 |
| 8  | 52.211-5        | MATERIAL REQUIREMENTS                                                                                                                                        | AUG/2000 |
| 9  | 52.211-15       | DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS                                                                                                                 | APR/2008 |
| 10 | 52.215-8        | ORDER OF PRECEDENCE--UNIFORM CONTRACT FORMAT                                                                                                                 | OCT/1997 |
| 11 | 52.222-1        | NOTICE TO THE GOVERNMENT OF LABOR DISPUTES                                                                                                                   | FEB/1997 |
| 12 | 52.222-3        | CONVICT LABOR                                                                                                                                                | JUN/2003 |
| 13 | 52.222-50       | COMBATING TRAFFICKING IN PERSONS (OCT 2025)                                                                                                                  | NOV/2021 |
| 14 | 52.222-55       | MINIMUM WAGES UNDER EXECUTIVE ORDER 14026                                                                                                                    | JAN/2022 |
| 15 | 52.222-62       | PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706                                                                                                                  | JAN/2022 |
| 16 | 52.225-13       | RESTRICTIONS ON CERTAIN FOREIGN PURCHASES                                                                                                                    | FEB/2021 |
| 17 | 52.226-7        | DRUG-FREE WORKPLACE (MAY 2024)                                                                                                                               | MAY/2024 |
| 18 | 52.226-8        | ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)                                                                               | MAY/2024 |
| 19 | 52.232-1        | PAYMENTS                                                                                                                                                     | APR/1984 |
| 20 | 52.232-8        | DISCOUNTS FOR PROMPT PAYMENT                                                                                                                                 | FEB/2002 |
| 21 | 52.232-11       | EXTRAS                                                                                                                                                       | APR/1984 |
| 22 | 52.232-23       | ASSIGNMENT OF CLAIMS (MAY 2014) -- ALTERNATE I (APR 1984)                                                                                                    | APR/1984 |
| 23 | 52.232-25       | PROMPT PAYMENT                                                                                                                                               | JAN/2017 |
| 24 | 52.232-33       | PAYMENT BY ELECTRONIC FUNDS TRANSFER--SYSTEM FOR AWARD MANAGEMENT                                                                                            | OCT/2018 |
| 25 | 52.232-39       | UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS                                                                                                                 | JUN/2013 |
| 26 | 52.232-40       | PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS(MAR 2023)                                                                                    | MAR/2023 |
| 27 | 52.233-1        | DISPUTES (MAY 2014) -- ALTERNATE I (DEC 1991)                                                                                                                | DEC/1991 |
| 28 | 52.233-1        | DISPUTES                                                                                                                                                     | MAY/2014 |
| 29 | 52.233-3        | PROTEST AFTER AWARD                                                                                                                                          | AUG/1996 |
| 30 | 52.233-4        | APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM                                                                                                                  | OCT/2004 |
| 31 | 52.243-1        | CHANGES--FIXED PRICE                                                                                                                                         | AUG/1987 |
| 32 | 52.245-9        | USE AND CHARGES                                                                                                                                              | APR/2012 |
| 33 | 52.246-23       | LIMITATION OF LIABILITY                                                                                                                                      | FEB/1997 |
| 34 | 52.247-63       | PREFERENCE FOR U.S.-FLAG AIR CARRIERS (JAN 2025)                                                                                                             | JAN/2025 |
| 35 | 52.248-1        | VALUE ENGINEERING                                                                                                                                            | JUN/2020 |
| 36 | 52.249-1        | TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE) (SHORT FORM)                                                                                     | APR/1984 |
| 37 | 52.249-8        | DEFAULT (FIXED-PRICE SUPPLY AND SERVICE)                                                                                                                     | APR/1984 |
| 38 | 52.253-1        | COMPUTER GENERATED FORMS                                                                                                                                     | JAN/1991 |
| 39 | 252.203-7000    | REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS                                                                                                | SEP/2011 |
| 40 | 252.203-7002    | REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022)                                                                                           | DEC/2022 |
| 41 | 252.204-7000    | DISCLOSURE OF INFORMATION                                                                                                                                    | OCT/2016 |
| 42 | 252.204-7003    | CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT                                                                                                                 | APR/1992 |

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|    | Regulatory Cite | Title                                                                                                               | Date     |
|----|-----------------|---------------------------------------------------------------------------------------------------------------------|----------|
| 43 | 252.204-7006    | BILLING INSTRUCTIONS--COST VOUCHERS (MAY 2023)                                                                      | MAY/2023 |
| 44 | 252.204-7012    | SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (MAY 2024) (DEVIATION 2024-00013, REVISION 1) | MAY/2024 |
| 45 | 252.204-7015    | NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023)                                    | JAN/2023 |
| 46 | 252.204-7018    | PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)               | JAN/2023 |
| 47 | 252.204-7020    | NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)                                                              | NOV/2023 |
| 48 | 252.225-7001    | BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM--BASIC (FEB 2024)                                                      | FEB/2024 |
| 49 | 252.225-7002    | QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS                                                                        | MAR/2022 |
| 50 | 252.225-7007    | PROHIBITION ON ACQUISITION OF CERTAIN ITEMS FROM COMMUNIST CHINESE MILITARY COMPANIES                               | DEC/2018 |
| 51 | 252.225-7041    | CORRESPONDENCE IN ENGLISH                                                                                           | JUN/1997 |
| 52 | 252.225-7048    | EXPORT-CONTROLLED ITEMS                                                                                             | JUN/2013 |
| 53 | 252.225-7056    | PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023)                                         | JAN/2023 |
| 54 | 252.227-7013    | RIGHTS IN TECHNICAL DATA--OTHER THAN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)                         | JAN/2025 |
| 55 | 252.227-7014    | RIGHTS IN NONCOMMERCIAL COMPUTER SOFTWARE AND NONCOMMERCIAL COMPUTER SOFTWARE DOCUMENTATION(JAN 2025)               | JAN/2025 |
| 56 | 252.227-7015    | TECHNICAL DATA--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)                                              | JAN/2025 |
| 57 | 252.227-7016    | RIGHTS IN BID OR PROPOSAL INFORMATION (JAN 2023)                                                                    | JAN/2023 |
| 58 | 252.227-7019    | VALIDATION OF ASSERTED RESTRICTIONS--COMPUTER SOFTWARE (JAN 2025)                                                   | JAN/2025 |
| 59 | 252.227-7025    | LIMITATIONS ON THE USE OR DISCLOSURE OF GOVERNMENT-FURNISHED INFORMATION MARKED WITH RESTRICTIVE LEGENDS (JAN 2025) | JAN/2025 |
| 60 | 252.227-7027    | DEFERRED ORDERING OF TECHNICAL DATA OR COMPUTER SOFTWARE                                                            | APR/1988 |
| 61 | 252.227-7030    | TECHNICAL DATA--WITHHOLDING OF PAYMENT                                                                              | MAR/2000 |
| 62 | 252.227-7037    | VALIDATION OF ASSERTED RESTRICTIONS ON TECHNICAL DATA (JAN 2025)                                                    | JAN/2025 |
| 63 | 252.232-7003    | ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS                                                     | DEC/2018 |
| 64 | 252.232-7010    | LEVIES ON CONTRACT PAYMENTS                                                                                         | DEC/2006 |
| 65 | 252.243-7001    | PRICING OF CONTRACT MODIFICATIONS                                                                                   | DEC/1991 |
| 66 | 252.246-7007    | CONTRACTOR COUNTERFEIT ELECTRONIC PART DETECTION AND AVOIDANCE SYSTEM (JAN2023)                                     | JAN/2023 |
| 67 | 252.246-7008    | SOURCES OF ELECTRONIC PARTS (JAN 2023)                                                                              | JAN/2023 |
| 68 | 252.247-7023    | TRANSPORTATION OF SUPPLIES BY SEA--BASIC (OCT 2024)                                                                 | OCT/2024 |
| 69 | 52.209-3        | FIRST ARTICLE APPROVAL -- CONTRACTOR TESTING (SEP 1989) -- ALTERNATE I (JAN 1997)                                   | JAN/1997 |

(a) The Contractor shall test 1 unit(s) of Lot/Item 0001AA as specified in this contract. At least 30 calendar days before the beginning of first article tests, the Contractor shall notify the Contracting Officer, in writing, of the time and location of the testing so that the Government may witness the tests.

(b) The Contractor shall submit the first article test report within 425 calendar days from the date of this contract to XR W1DF AVIATION-MISSILE RDEC BLDG 5400 LINDNER RD WEST SELA WING HIGH BAY REDSTONE ARSENAL, AL 35898-5000 marked "First Article Test Report: Contract No. TBD , Lot/Item No. 0001AC". Within 30 calendar days after the Government receives the test report, the Contracting Officer shall notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval shall state any further action required of the Contractor. A notice of disapproval shall cite reasons for the disapproval.

(c) If the first article is disapproved, the Contractor, upon Government request, shall repeat any or all first article tests. After each request for additional tests, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall then conduct the tests and deliver another report to the Government under the terms and conditions and within the time specified by the Government. The Government shall take action on this report within the time specified in paragraph (b) above. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule, or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article report on time, or the Contracting Officer disapproves any first article, the Contractor shall be deemed to have failed to make delivery within the meaning of the Default clause of this contract.

|                                                                         |                                                                                          |                                        |
|-------------------------------------------------------------------------|------------------------------------------------------------------------------------------|----------------------------------------|
| <b>CONTINUATION SHEET</b>                                               | <b>Reference No. of Document Being Continued</b><br>SPRRA2-26-P-0005<br><b>PIIN/SIIN</b> | <b>Page 28 of 50</b><br><b>MOD/AMD</b> |
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(e) Unless otherwise provided in the contract, and if the approved first article is not consumed or destroyed in testing, the Contractor may deliver the approved first article as part of the contract quantity if it meets all contract requirements for acceptance.

(f) If the Government does not act within the time specified in paragraph (b) or (c) above, the Contracting Officer shall, upon timely written request from the Contractor, equitably adjust under the changes clause of this contract the delivery or performance dates and/or the contract price, and any other contractual term affected by the delay.

(g) Before first article approval, the acquisition of materials or components for, or the commencement of production of, the balance of the contract quantity is at the sole risk of the Contractor. Before first article approval, the costs thereof shall not be allocable to this contract for

- (1) progress payments, or
- (2) termination settlements if the contract is terminated for the convenience of the Government.

(h) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the offeror/contractor and have been accepted by the Government. The offeror/contractor may request a waiver.

(i) The Contractor shall produce both the first article and the production quantity at the same facility.

(End of Clause)

(a) The Contractor shall test 1 unit(s) of Lot/Item 0001AA as specified in this contract. At least 30 calendar days before the beginning of first article tests, the Contractor shall notify the Contracting Officer, in writing, of the time and location of the testing so that the Government may witness the tests.

(b) The Contractor shall submit the first article test report within 425 calendar days from the date of this contract to XR W1DF AVIATION-MISSILE RDEC BLDG 5400 LINDNER RD WEST SELA WING HIGH BAY REDSTONE ARSENAL, AL 35898-5000 marked "First Article Test Report: Contract No. TBD, Lot/Item No. 0001AC". Within 30 calendar days after the Government receives the test report, the Contracting Officer shall notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval shall state any further action required of the Contractor. A notice of disapproval shall cite reasons for the disapproval.

(c) If the first article is disapproved, the Contractor, upon Government request, shall repeat any or all first article tests. After each request for additional tests, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall then conduct the tests and deliver another report to the Government under the terms and conditions and within the time specified by the Government. The Government shall take action on this report within the time specified in paragraph (b) above. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule, or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article report on time, or the Contracting Officer disapproves any first article, the Contractor shall be deemed to have failed to make delivery within the meaning of the Default clause of this contract.

(e) Unless otherwise provided in the contract, and if the approved first article is not consumed or destroyed in testing, the Contractor may deliver the approved first article as part of the contract quantity if it meets all contract requirements for acceptance.

(f) If the Government does not act within the time specified in paragraph (b) or (c) above, the Contracting Officer shall, upon timely written request from the Contractor, equitably adjust under the changes clause of this contract the delivery or performance dates and/or the contract price, and any other contractual term affected by the delay.

(g) Before first article approval, the acquisition of materials or components for, or the commencement of production of, the balance of the contract quantity is at the sole risk of the Contractor. Before first article approval, the costs thereof shall not be allocable to this contract for

- (1) progress payments, or

|                           |                                                                                                         |                      |
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(2) termination settlements if the contract is terminated for the convenience of the Government.

(h) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the offeror/contractor and have been accepted by the Government. The offeror/contractor may request a waiver.

(End of Clause)

71            52.216-19            ORDER LIMITATIONS            OCT/1995

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than 1, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor --

(1) Any order for a single item in excess of 4;

(2) Any order for a combination of items in excess of 4; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 7 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

72            52.216-20            DEFINITE QUANTITY            OCT/1995

(a) This is a definite-quantity, indefinite-delivery contract for the supplies or services specified, and effective for the period stated, in the Schedule.

(b) The Government shall order the quantity of supplies or services specified in the Schedule, and the Contractor shall furnish them when ordered. Delivery or performance shall be at locations designated in orders issued in accordance with the Ordering clause and the Schedule.

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that time shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after TBD.

(End of Clause)

73            52.246-17            WARRANTY OF SUPPLIES OF A NON-COMPLEX NATURE            JUN/2003

(a) Definitions. As used in this clause--

|                                                                         |                                                                                          |                                            |
|-------------------------------------------------------------------------|------------------------------------------------------------------------------------------|--------------------------------------------|
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"Acceptance" means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing supplies, or approves specific services as partial or complete performance of the contract.

"Supplies" means the end items furnished by the Contractor and related services required under the contract. The word does not include "data."

(b) Contractor's obligations.

(1) Notwithstanding inspection and acceptance by the Government of supplies furnished under this contract, or any condition of this contract concerning the conclusiveness thereof, the Contractor warrants that for one year from the last delivery under the contract--

(i) All supplies furnished under this contract will be free from defects in material or workmanship and will conform with all requirements of this contract; and

(ii) The preservation, packaging, packing, and marking, and the preparation for, and method of, shipment of such supplies will conform with the requirements of this contract.

(2) When return, correction, or replacement is required, transportation charges and responsibility for the supplies while in transit shall be borne by the Contractor. However, the Contractor's liability for the transportation charges shall not exceed an amount equal to the cost of transportation by the usual commercial method of shipment between the place of delivery specified in this contract and the Contractor's plant, and return.

(3) Any supplies or parts thereof, corrected or furnished in replacement under this clause, shall also be subject to the terms of this clause to the same extent as supplies initially delivered. The warranty, with respect to supplies or parts thereof, shall be equal in duration to that in paragraph (b)(1) of this clause and shall run from the date of delivery of the corrected or replaced supplies.

(4) All implied warranties of merchantability and "fitness for a particular purpose" are excluded from any obligation contained in this contract.

(c) Remedies available to the Government.

(1) The Contracting Officer shall give written notice to the Contractor of any breach of warranties in paragraph (b)(1) of this clause within one year from the last delivery under the contract.

(2) Within a reasonable time after the notice, the Contracting Officer may either --

(i) Require, by written notice, the prompt correction or replacement of any supplies or parts thereof (including preservation, packaging, packing, and marking) that do not conform with the requirements of this contract within the meaning of paragraph (b)(1) of this clause; or

(ii) Retain such supplies and reduce the contract price by an amount equitable under the circumstances.

(3)(i) If the contract provides for inspection of supplies by sampling procedures, conformance of supplies or components subject to warranty action shall be determined by the applicable sampling procedures in the contract. The Contracting Officer --

(A) May, for sampling purposes, group any supplies delivered under this contract;

(B) Shall require the size of the sample to be that required by sampling procedures specified in the contract for the quantity of supplies on which warranty action is proposed;

(C) May project warranty sampling results over supplies in the same shipment or other supplies contained in other shipments even though all of such supplies are not present at the point of reinspection; provided, that the supplies remaining are reasonably representative of the quantity on which warranty action is proposed; and

(D) Need not use the same lot size as on original inspection or reconstitute the original inspection lots.

(ii) Within a reasonable time after notice of any breach of the warranties specified in paragraph (b)(1) of this clause, the Contracting Officer may exercise one or more of the following options:

(A) Require an equitable adjustment in the contract price for any group of supplies.

(B) Screen the supplies grouped for warranty action under this clause at the Contractor's expense and return all nonconforming supplies to the Contractor for correction or replacement.

|                           |                                                                                          |                                        |
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(C) Require the Contractor to screen the supplies at locations designated by the Government within the contiguous United States and to correct or replace all nonconforming supplies.

(D) Return the supplies grouped for warranty action under this clause to the Contractor (irrespective of the f.o.b. point or the point of acceptance) for screening and correction or replacement.

(4)(i) The Contracting Officer may, by contract or otherwise, correct or replace the nonconforming supplies with similar supplies from another source and charge to the Contractor the cost occasioned to the Government thereby if the Contractor --

(A) Fails to make redelivery of the corrected or replaced supplies within the time established for their return; or

(B) Fails either to accept return of the nonconforming supplies or fails to make progress after their return to correct or replace them so as to endanger performance of the delivery schedule, and in either of these circumstances does not cure such failure within a period of 10 days (or such longer period as the Contracting Officer may authorize in writing) after receipt of notice from the Contracting Officer specifying such failure.

(ii) Instead of correction or replacement by the Government, the Contracting Officer may require an equitable adjustment of the contract price. In addition, if the Contractor fails to furnish timely disposition instructions, the Contracting Officer may dispose of the nonconforming supplies for the Contractor's account in a reasonable manner. The Government is entitled to reimbursement from the Contractor, or from the proceeds of such disposal, for the reasonable expenses of the care and disposition of the nonconforming supplies, as well as for excess costs incurred or to be incurred.

(5) The rights and remedies of the Government provided in this clause are in addition to and do not limit any rights afforded to the Government by any other clause of this contract.

(End of Clause)

74            52.204-19            INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS            DEC/2014

The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

75            52.204-21            BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS            NOV/2021

(a) Definitions. As used in this clause--

"Covered contractor information system" means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

"Federal contract information" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public Web sites) or simple transactional information, such as necessary to process payments.

"Information" means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

"Information system" means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

"Safeguarding" means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

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- (iii) Verify and control/limit connections to and use of external information systems.
- (iv) Control information posted or processed on publicly accessible information systems.
- (v) Identify information system users, processes acting on behalf of users, or devices.
- (vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.
- (vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.
- (viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.
- (ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.
- (x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.
- (xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.
- (xii) Identify, report, and correct information and information system flaws in a timely manner.
- (xiii) Provide protection from malicious code at appropriate locations within organizational information systems.
- (xiv) Update malicious code protection mechanisms when new releases are available.
- (xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

76            52.204-25            PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO            NOV/2021  
SURVEILLANCE SERVICES OR EQUIPMENT

- (a) Definitions. As used in this clause--
- "Backhaul" means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).
- "Covered foreign country" means The Peoples Republic of China.
- "Covered telecommunications equipment or services" means--
- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
  - (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);



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(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

"Critical technology" means--

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

"Interconnection arrangements" means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

"Reasonable inquiry" means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

"Roaming" means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

"Substantial or essential component" means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) Exceptions. This clause does not prohibit contractors from providing--

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

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(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement. (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil> . For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil> .

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

77                      52.204-27                      Prohibition on a ByteDance Covered Application (Jun 2023)                      JUN/2023  
(a) Definitions. As used in this clause

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

(b) Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, No TikTok on Government Devices Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractors employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

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(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

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                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | 52.213-4 | TERMS AND CONDITIONS--SIMPLIFIED ACQUISITIONS (OTHER THAN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES) (MAR 2025) (DEVIATION 2025-000003) and (DEVIATION 2025-000004) | MAR/2025 |
| <p>(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses that are incorporated by reference:</p> <p>(1) The clauses listed below implement provisions of law or Executive order:</p> <p>(i) <u>52.203-19</u>, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).</p> <p>(ii) <u>52.204-23</u>, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).</p> <p>(iii) <u>52.204-25</u>, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).</p> <p>(iv) <u>52.204-27</u>, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328), unless the agency grants an exception - see paragraph (b) of 52.204-27.</p> <p>(v) <u>52.204-30</u>, Federal Acquisition Supply Chain Security Act Orders Prohibition. (Dec 2023) (Pub. L. 115390, title II).</p> <p>(vi) <u>52.222-3</u>, Convict Labor (Jun 2003) (E.O.11755).</p> <p>(vii) [Reserved]</p> <p>(viii) [Reserved]</p> <p>(ix) <u>52.225-13</u>, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).</p> <p>(x) <u>52.232-40</u>, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ( <u>31 U.S.C. 3903</u> and <u>10 U.S.C. 3801</u>).</p> <p>(xi) <u>52.233-3</u>, Protest After Award (Aug 1996) ( <u>31 U.S.C. 3553</u>).</p> <p>(xii) <u>52.233-4</u>, Applicable Law for Breach of Contract Claim (Oct 2004) ( <u>Pub. L. 108-77</u> and 108-78 ( <u>19 U.S.C. 3805 note</u>)).</p> <p>(2) Listed below are additional clauses that apply:</p> <p>(i) <u>52.232-1</u>, Payments (Apr 1984).</p> <p>(ii) <u>52.232-8</u>, Discounts for Prompt Payment (Feb 2002).</p> <p>(iii) <u>52.232-11</u>, Extras (Apr 1984).</p> <p>(iv) <u>52.232-25</u>, Prompt Payment (Jan 2017).</p> <p>(v) <u>52.232-39</u>, Unenforceability of Unauthorized Obligations (Jun 2013).</p> <p>(vi) <u>52.233-1</u>, Disputes (May 2014).</p> <p>(vii) <u>52.244-6</u>, Subcontracts for Commercial Products and Commercial Services (Jan 2025).</p> <p>(viii) <u>52.253-1</u>, Computer Generated Forms (Jan 1991).</p> <p>(b) The Contractor shall comply with the following FAR clauses, incorporated by reference, unless the circumstances do not apply:</p> <p>(1) The clauses listed below implement provisions of law or Executive order:</p> <p>(i) <u>52.203-17</u>, Contractor Employee Whistleblower Rights (Nov 2023) ( <u>41 U.S.C. 4712</u>); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community see FAR <u>3.900(a)</u>.</p> <p>(ii) <u>52.204-10</u>, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ( <u>31 U.S.C. 6101 note</u>) (Applies to contracts valued at or above the threshold specified in FAR <u>4.1403(a)</u> on the date of award of this contract).</p> <p>(iii) <u>52.222-19</u>, Child Labor Cooperation with Authorities and Remedies (Jan 2025) ( <u>E.O. 13126</u>) (Applies to contracts for supplies exceeding the micro-purchase threshold, as defined in <u>2.101</u> on the date of award of this contract).</p> <p>(iv) <u>52.222-20</u>, Contracts for Materials, Supplies, Articles, and Equipment., Contracts for Materials, Supplies, Articles, and Equipment (Jun 2020) ( <u>41 U.S.C. chapter 65</u>) (Applies to supply contracts over the threshold specified in FAR 22.602 on the date of award of this contract, in the United States, Puerto Rico, or the U.S. Virgin Islands).</p> <p>(v) <u>52.222-35</u>, Equal Opportunity for Veterans (Jun 2020) ( <u>38 U.S.C. 4212</u>) (Applies to contracts valued at or above the threshold specified in FAR <u>22.1303(a)</u> on the date of award of this contract).</p> <p>(vi) <u>52.222-36</u>, Equal Employment for Workers with Disabilities (Jun 2020) ( <u>29 U.S.C. 793</u>) (Applies to contracts over the threshold specified in FAR <u>22.1408(a)</u> on the date of award of this contract, unless the work is to be performed outside the United States by employees recruited outside the United States). (For purposes of this clause, "United States" includes the 50 States, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, and Wake Island.)</p> <p>(vii) <u>52.222-37</u>, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212) (Applies to contracts valued at or above the threshold specified in FAR <u>22.1303(a)</u> on the date of award of this contract).</p> <p>(viii) <u>52.222-41</u>, Service Contract Labor Standards (Aug 2018) ( <u>41 U.S.C. chapter 67</u>) (Applies to service contracts over \$2,500 that are subject to the Service Contract Labor Standards statute and will be performed in the United States, District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, Johnston Island, Wake Island, or the outer Continental Shelf).</p> <p>(ix)</p> <p>(A) <u>52.222-50</u>, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627) (Applies to all solicitations and contracts).</p> |          |                                                                                                                                                                       |          |

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(B) Alternate I (Mar 2015) (Applies if the Contracting Officer has filled in the following information with regard to applicable directives or notices: Document title(s), source for obtaining document(s), and contract performance location outside the United States to which the document applies).

(x) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022) (Applies when 52.222-6 or 52.222-41 are in the contract and performance in whole or in part is in the United States (the 50 States, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, Johnston Island, Wake Island, and the outer Continental Shelf as defined in the Outer Continental Shelf Lands Act ( 43 U.S.C. 1331, et seq.))).

(xi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706) (Applies when 52.222-6 or 52.222-41 are in the contract and performance in whole or in part is in the United States (the 50 States and the District of Columbia.))

(xii) 52.223-5, Pollution Prevention and Right-to-Know Information (May 2024) ( 42 U.S.C. 11001-11050 and 13101-13109) (Applies to services performed on Federal facilities).

(xiii) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ( 42 U.S.C. 7671, et seq.) (Applies to contracts for products as prescribed at FAR 23.109(d)(1)).

(xiv) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ( 42 U.S.C. 7671, et seq.) (Applies to maintenance, service, repair, or disposal of refrigeration equipment and air conditioners).

(xv) 52.223-20, Aerosols (May 2024) ( 42 U.S.C. 7671, et seq.) (Applies to contracts for products that may contain high global warming potential hydrofluorocarbons as a propellant or as a solvent; or contracts for maintenance or repair of electronic or mechanical devices).

(xvi) 52.223-21, Foams (May 2024) ( 42 U.S.C. 7671, et seq.) (Applies to contracts for products that may contain high global warming potential hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons as a foam blowing agent; or contracts for construction of buildings or facilities).

(xvii) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-00004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l) (Applies to contracts when the agency identifies in the statement of work, or elsewhere in the contract, the sustainable products and services that apply to the acquisition). (xviii)

(A) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 67) (Applies to contracts for supplies, and to contracts for services involving the furnishing of supplies, for use in the United States or its outlying areas, if the value of the supply contract or supply portion of a service contract exceeds the micro-purchase threshold, as defined in 2.101 on the date of award of this contract, and the acquisition-

(1) Is set aside for small business concerns; or

(2) Cannot be set aside for small business concerns (see 19.502-2), and does not exceed \$50,000).

(B) Alternate I (OCT 2022) (Applies if the Contracting Officer has filled in the domestic content threshold below, which will apply to the entire contract period of performance. Substitute the following sentence for the first sentence of paragraph (1)(ii)(A) of the definition of domestic end product in paragraph (a) of 52.225-1: (A) The cost of its components mined, produced, or manufactured in the United States exceeds \_\_\_\_ percent of the cost of all its components. [ Contracting officer to insert the percentage per instructions at 13.302-5(d)(4). ])

(xix) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations., Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792) (Applies to contracts greater than the threshold specified in FAR 26.404 on the date of award of this contract, that provide for the provision, the service, or the sale of food in the United States).

(xx) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct 2013)(Applies when the payment will be made by electronic funds transfer (EFT) and the payment office uses the System for Award Management (SAM) as its source of EFT information).

(xxi) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (Applies when the payment will be made by EFT and the payment office does not use the SAM database as its source of EFT information).

(xxii) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxiii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ( 46 U.S.C. 55305)(Applies to supplies transported by ocean vessels (except for the types of subcontracts listed at 47.504(d)).

(xxiv) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) ( 49 U.S.C. 40118(g)). (Applies to contracts with a U.S.-flag carrier for the transportation by air of passengers; does not apply to contracts awarded by the Department of Defense or contracts for commercial products).

(2) Listed below are additional clauses that may apply:

(i) 52.204-21, Basic Safeguarding of Covered Contractor Information Systems (Nov 2021) (Applies to contracts when the contractor or a subcontractor at any tier may have Federal contract information residing in or transiting through its information system.)

(ii) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Jan 2025) (Applies to contracts over the threshold specified in FAR 9.405-2(b) on the date of award of this contract).

(iii) 52.211-17, Delivery of Excess Quantities (Sept 1989) (Applies to fixed-price supplies).

(iv) 52.247-29, F.o.b. Origin (Feb 2006) (Applies to supplies if delivery is f.o.b. origin).

(v) 52.247-34, F.o.b. Destination (Jan 1991) (Applies to supplies if delivery is f.o.b. destination).

(c) FAR 52.252-2, Clauses Incorporated by Reference (Feb 1998). This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

[Insert one or more Internet addresses]

(d) Inspection/Acceptance. The Contractor shall tender for acceptance only those items that conform to the requirements of this

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contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. The Government must exercise its postacceptance rights-

- (1) Within a reasonable period of time after the defect was discovered or should have been discovered; and
  - (2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.
- (e) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence, such as acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.
- (f) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges that the Contractor can demonstrate to the satisfaction of the Government, using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractors records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.
- (g) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.
- (h) Warranty. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(End of clause)

79                      52.215-19                      NOTIFICATION OF OWNERSHIP CHANGES                      OCT/1997

(a) The Contractor shall make the following notifications in writing:

(1) When the Contractor becomes aware that a change in its ownership has occurred, or is certain to occur, that could result in changes in the valuation of its capitalized assets in the accounting records, the Contractor shall notify the Administrative Contracting Officer (ACO) within 30 days.

(2) The Contractor shall also notify the ACO within 30 days whenever changes to asset valuations or any other cost changes have occurred or are certain to occur as a result of a change in ownership.

(b) The Contractor shall --

- (1) Maintain current, accurate, and complete inventory records of assets and their costs;
- (2) Provide the ACO or designated representative ready access to the records upon request;
- (3) Ensure that all individual and grouped assets, their capitalized values, accumulated depreciation or amortization, and remaining useful lives are identified accurately before and after each of the Contractors ownership changes; and
- (4) Retain and continue to maintain depreciation and amortization schedules based on the asset records maintained before each Contractor ownership change.

(c) The Contractor shall include the substance of this clause in all subcontracts under this contract that meet the applicability requirement of FAR 15.408(k).

(End of Clause)

|                           |                                                                                                         |                      |
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52.216-2

ECONOMIC PRICE ADJUSTMENT--STANDARD SUPPLIES

NOV/2021

(a) The Contractor warrants that the unit price stated in the Schedule for \_\_\_\_\_ [offeror insert Schedule line item number] is not in excess of the Contractors applicable established price in effect on the contract date for like quantities of the same item. The term unit price excludes any part of the price directly resulting from requirements for preservation, packaging, or packing beyond standard commercial practice. The term established price means a price that --

(1) Is an established catalog or market price for a commercial product sold in substantial quantities to the general public; and

(2) Is the net price after applying any standard trade discounts offered by the Contractor.

(b) The Contractor shall promptly notify the Contracting Officer of the amount and effective date of each decrease in any applicable established price. Each corresponding contract unit price shall be decreased by the same percentage that the established price is decreased. The decrease shall apply to those items delivered on and after the effective date of the decrease in the Contractors established price, and this contract shall be modified accordingly.

(c) If the Contractors applicable established price is increased after the contract date, the corresponding contract unit price shall be increased, upon the Contractors written request to the Contracting Officer, by the same percentage that the established price is increased, and the contract shall be modified accordingly, subject to the following limitations:

(1) The aggregate of the increases in any contract unit price under this clause shall not exceed 10 percent of the original contract unit price.

(2) The increased contract unit price shall be effective --

(i) On the effective date of the increase in the applicable established price if the Contracting Officer receives the Contractors written request within 10 days thereafter; or

(ii) If the written request is received later, on the date the Contracting Officer receives the request.

(3) The increased contract unit price shall not apply to quantities scheduled under the contract for delivery before the effective date of the increased contract unit price, unless failure to deliver before that date results from causes beyond the control and without the fault or negligence of the Contractor, within the meaning of the Default clause.

(4) No modification increasing a contract unit price shall be executed under this paragraph (c) until the Contracting Officer verifies the increase in the applicable established price.

(5) Within 30 days after receipt of the Contractors written request, the Contracting Officer may cancel, without liability to either party, any undelivered portion of the contract items affected by the requested increase.

(d) During the time allowed for the cancellation provided for in subparagraph (c)(5) of this clause, and thereafter if there is no cancellation, the Contractor shall continue deliveries according to the contract delivery schedule, and the Government shall pay for such deliveries at the contract unit price, increased to the extent provided by paragraph (c) of this clause.

(End of Clause)

81

52.219-28

POST-AWARD SMALL BUSINESS PROGRAM REPRESENTATION (JAN 2025)

JAN/2025

(a) Definitions. As used in this clause

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

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(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract ( e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract ( e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract ( e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards> .

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting

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office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it    is,    is not a small business concern under NAICS Code        assigned to contract number       .

(2) [ Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it    is,    is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [ Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause. ] The Contractor represents that it        is,        is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it    is,    is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [ The Contractor shall enter the name and unique entity identifier of each party to the joint venture:   .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it        is,        is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [ The Contractor shall enter the name and unique entity identifier of each party to the joint venture:        .]

(6) [ Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause. ] The Contractor represents that it   is  ,   is not   a veteran-owned small business concern.

(7) [ Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.]  
The Contractor represents that it   is  ,   is not   a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it    is,    is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [ The Contractor shall enter the name and unique entity identifier of each party to the joint venture:   .]

(9) [ Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause. ] The Contractor represents that

(i) It    is,    is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It    is,    is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [ The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: \_\_\_\_\_.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[ Contractor to sign and date and insert authorized signer's name and title.\_\_\_\_\_ ]

(End of clause)

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52.222-19

CHILD LABOR--COOPERATION WITH AUTHORITIES AND REMEDIES (JAN 2025)

JAN/2025

0(a) Applicability. This clause does not apply to the extent that the Contractor is supplying end products mined, produced, or manufactured in--

(1) Israel, and the anticipated value of the acquisition is \$50,000 or more;

(2) Mexico, and the anticipated value of the acquisition is \$102,280 or more; or

(3) Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Italy, Japan, Korea, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or the United Kingdom and the anticipated value of the acquisition is \$174,000 or more.

(b) Cooperation with Authorities. To enforce the laws prohibiting the manufacture or importation of products mined, produced, or manufactured by forced or indentured child labor, authorized officials may need to conduct investigations to determine whether forced or indentured child labor was used to mine, produce, or manufacture any product furnished under this contract. If the solicitation includes the provision 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products, or the equivalent at 52.212-3(i), the Contractor agrees to cooperate fully with authorized officials of the contracting agency, the Department of the Treasury, or the



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Department of Justice by providing reasonable access to records, documents, persons, or premises upon reasonable request by the authorized officials.

(c) Violations. The Government may impose remedies set forth in paragraph (d) for the following violations:

(1) The Contractor has submitted a false certification regarding knowledge of the use of forced or indentured child labor for listed end products.

(2) The Contractor has failed to cooperate, if required, in accordance with paragraph (b) of this clause, with an investigation of the use of forced or indentured child labor by an Inspector General, Attorney General, or the Secretary of the Treasury.

(3) The Contractor uses forced or indentured child labor in its mining, production, or manufacturing processes.

(4) The Contractor has furnished under the contract end products or components that have been mined, produced, or manufactured wholly or in part by forced or indentured child labor. (The Government will not pursue remedies at paragraph (d)(2) or paragraph (d)(3) of this clause unless sufficient evidence indicates that the Contractor knew of the violation.)

(d) Remedies.

(1) The Contracting Officer may terminate the contract.

(2) The suspending and debarring official may suspend the Contractor in accordance with procedures in FAR subpart 9.4.

(3) The suspending and debarring official may debar the Contractor for a period not to exceed 3 years in accordance with the procedures in FAR subpart 9.4.

(End of clause)

83 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES JUN/2020

(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

84 52.252-2 CLAUSES INCORPORATED BY REFERENCE (Feb 1998) FEB/1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of Clause)

85 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (Nov 2020) NOV/2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

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(b) The use in this solicitation or contract of any DoD Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

86

252.225-7013

DUTY-FREE ENTRY

NOV/2023

Definitions. As used in this clause

"Component," means any item supplied to the Government as part of an end product or of another component.

"Customs territory of the United States" means the 50 States, the District of Columbia, and Puerto Rico.

"Eligible product" means

(1) "Designated country end product," as defined in the Trade Agreements (either basic or alternate) clause of this contract;

(2)Free Trade Agreement country end product,other than aend product,aMoroccan end product,aPanamanian end product,or aPeruvian end product,as defined in the Buy AmericanFree Trade AgreementsBalance of Payments Program (either basic or alternate II) clause of this contract; or

(3)Free Trade Agreement country end productother than aend product, Korean end product,Moroccan end product, Panamanian end product,orPeruvian end product,as defined in the Buy AmericanFree Trade AgreementsBalance of Payments Program (either alternate IV or alternate V) clause of this contract.

"Qualifying country" and "qualifying country end product" have the meanings given in the Trade Agreements clause, the Buy American and Balance of Payments Program clause, or the Buy AmericanFree Trade AgreementsBalance of Payments Program clause of this contract, basic or alternate.

(b) Except as provided in paragraph (i) of this clause, or unless supplies were imported into the customs territory of the United States before the date of this contract or the applicable subcontract, the price of this contract shall not include any amount for duty on

(1) End items that are eligible products or qualifying country end products;

(2) Components (including, without limitation, raw materials and intermediate assemblies) produced or made in qualifying countries, that are to be incorporated in U.S.- made end products to be delivered under this contract; or

(3) Other supplies for which the Contractor estimates that duty will exceed \$300 per shipment into the customs territory of the United States.

(c) The Contractor shall

(1) Claim duty-free entry only for supplies that the Contractor intends to deliver to the Government under this contract, either as end items or components of end items; and

(2) Pay duty on supplies, or any portion thereof, that are diverted to nongovernmental use, other than

(i) Scrap or salvage; or

(ii) Competitive sale made, directed, or authorized by the Contracting Officer.

(d) Except as the Contractor may otherwise agree, the Government will execute duty-free entry certificates and will afford such assistance as appropriate to obtain the duty-free entry of supplies

(1) For which no duty is included in the contract price in accordance with paragraph

(b) of this clause; and

(2) For which shipping documents bear the notation specified in paragraph (e) of this clause.

(e) For foreign supplies for which the Government will issue duty-free entry certificates in accordance with this clause, shipping documents submitted to Customs shall

(1) Consign the shipments to the appropriate

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- (i) Military department in care of the Contractor, including the Contractor's delivery address; or
- (ii) Military installation; and
- (2) Include the following information:
  - (i) Prime contract number and, if applicable, delivery order number.
  - (ii) Number of the subcontract for foreign supplies, if applicable.
  - (iii) Identification of the carrier.
  - (iv)(A) For direct shipments to a U.S. military installation, the notation: "UNITED STATES GOVERNMENT, DEPARTMENT OF DEFENSE Duty-Free Entry to be claimed pursuant to Section XXII, Chapter 98, Subchapter VIII, Item 9808.00.30 of the Harmonized Tariff Schedule of the United States. Upon arrival of shipment at the appropriate port of entry, District Director of Customs, please release shipment under 19 CFR part 142 and notify Defense Contract Management Agency (DCMA) St. Louis, St. Louis, MO, ATTN: Duty Free Entry Team, 1222 Spruce Street, Room 9.300, St. Louis, MO 63103-2812, for execution of Customs Form 7501, 7501A, or 7506 and any required duty-free entry certificates."
  - (B) If the shipment will be consigned to other than a military installation, e.g., a domestic contractor's plant, the shipping document notation shall be altered to include the name and address of the contractor, agent, or broker who will notify DCMA St. Louis, Duty Free Entry Team, for execution of the duty-free entry certificate. (If the shipment will be consigned to a contractor's plant and no duty-free entry certificate is required due to a trade agreement, the Contractor shall claim duty-free entry under the applicable trade agreement and shall comply with the U.S. Customs Service requirements. No notification to DCMA St. Louis, Duty Free Entry Team, is required.)
  - (v) Gross weight in pounds (if freight is based on space tonnage, state cubic feet in addition to gross shipping weight).
  - (vi) Estimated value in U.S. dollars.
  - (vii) Activity address number of the contract administration office administering the prime contract, e.g., for DCMA Dayton, S3605A.
- (f)Preparation of customs forms.
  - (1)(i) Except for shipments consigned to a military installation, the Contractor shall
    - (A) Prepare any customs forms required for the entry of foreign supplies into the customs territory of the United States in connection with this contract; and
    - (B) Submit the completed customs forms to the District Director of Customs, with a copy to DCMA St. Louis, Duty Free Entry Team for execution of any required duty-free entry certificates.
  - (ii) Shipments consigned directly to a military installation will be released in accordance with sections 10.101 and 10.102 of the U.S. Customs regulations.
  - (2) For shipments containing both supplies that are to be accorded duty-free entry and supplies that are not, the Contractor shall identify on the customs forms those items that are eligible for duty-free entry.
- (g) The Contractor shall
  - (1) Prepare (if the Contractor is a foreign supplier), or shall instruct the foreign supplier to prepare, a sufficient number of copies of the bill of lading (or other shipping document) so that at least two of the copies accompanying the shipment will be available for use by the District Director of Customs at the port of entry;
  - (2) Consign the shipment as specified in paragraph (e) of this clause; and
  - (3) Mark on the exterior of all packages
    - (i) "UNITED STATES GOVERNMENT, DEPARTMENT OF DEFENSE"; and
    - (ii) The activity address number of the contract administration office administering the prime contract.
  - (h) The Contractor shall notify the Administrative Contracting Officer (ACO) in writing of any purchase of eligible products or qualifying country supplies to be accorded duty-free entry, that are to be imported into the customs territory of the United States for

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delivery to the Government or for incorporation in end items to be delivered to the Government. The Contractor shall furnish the notice to the ACO immediately upon award to the supplier and shall include in the notice

- (1) The Contractor's name, address, and Commercial and Government Entity (CAGE) code;
- (2) Prime contract number and, if applicable, delivery order number;
- (3) Total dollar value of the prime contract or delivery order;
- (4) Date of the last scheduled delivery under the prime contract or delivery order;
- (5) Foreign supplier's name and address;
- (6) Number of the subcontract for foreign supplies;
- (7) Total dollar value of the subcontract for foreign supplies;
- (8) Date of the last scheduled delivery under the subcontract for foreign supplies;
- (9) List of items purchased;
- (10) An agreement that the Contractor will pay duty on supplies, or any portion thereof, that are diverted to nongovernmental use other than
  - (i) Scrap or salvage; or
  - (ii) Competitive sale made, directed, or authorized by the Contracting Officer;
- (11) Country of origin; and
- (12) Scheduled delivery date(s).
  - (i) This clause does not apply to purchases of eligible products or qualifying country supplies in connection with this contract if
    - (1) The supplies are identical in nature to supplies purchased by the Contractor or any subcontractor in connection with its commercial business; and
    - (2) It is not economical or feasible to account for such supplies so as to ensure that the amount of the supplies for which duty-free entry is claimed does not exceed the amount purchased in connection with this contract.
  - (j) The Contractor shall
    - (1) Insert the substance of this clause, including this paragraph (j), in all subcontracts for
      - (i) Qualifying country components; or
      - (ii) Nonqualifying country components for which the Contractor estimates that duty will exceed \$200 per unit;
    - (2) Require subcontractors to include the number of this contract on all shipping documents submitted to Customs for supplies for which duty-free entry is claimed pursuant to this clause; and
    - (3) Include in applicable subcontracts
      - (i) The name and address of the ACO for this contract;
      - (ii) The name, address, and activity address number of the contract administration office specified in this contract; and
      - (iii) The information required by paragraphs (h)(1), (2), and (3) of this clause.

(End of clause)

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| 87 | 252.225-7036 | BUY AMERICAN--FREE TRADE AGREEMENTS--BALANCE OF PAYMENTS PROGRAM--<br>BASIC (FEB 2024) | FEB/2024 |
|----|--------------|----------------------------------------------------------------------------------------|----------|

((a) Definitions. As used in this clause

Bahraini end product means an article that

(1) Is wholly the growth, product, or manufacture of Bahrain; or

(2) In the case of an article that consists in whole or in part of materials from another country, has been substantially transformed in Bahrain into a new and different article of commerce with a name, character, or use distinct from that of the article or articles from which it was transformed. The term refers to a product offered for purchase under a supply contract, but for purposes of calculating the value of the end product includes services (except transportation services) incidental to its supply, provided that the value of those incidental services does not exceed the value of the product itself.

Commercially available off-the-shelf (COTS) item

(1) Means any item of supply (including construction material) that is

(i) A commercial product (as defined in paragraph (1) of the definition of commercial product in section 2.101 of the Federal Acquisition Regulation (FAR));

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into an end product.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means domestic construction material or a domestic end product that is deemed critical to the U.S. supply chain. The list of critical items is at FAR 25.105.

Domestic end product means

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(1) For an end product that does not consist wholly or predominantly of iron or steel or a combination of both

(i) An unmanufactured end product mined or produced in the United States; or

(ii) An end product manufactured in the United States if

(A) The cost of its qualifying country components and its components that are mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029, unless an alternate percentage is established for a contract in accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 225.101(d); or award is made before January 1, 2030, for a foreign end product that exceeds 55 percent domestic content (see DFARS 225.103(b)(ii)). The cost of components includes transportation costs to the place of incorporation into the end product and U.S. duty (whether or not a duty-free entry certificate is issued). Components of unknown origin are treated as foreign. Scrap generated, collected, and prepared for processing in the United States is considered domestic. A component is considered to have been mined, produced, or manufactured in the United States (regardless of its source in fact) if the end product in which it is incorporated is manufactured in the United States and the component is of a class or kind for which the Government has determined that

(1) Sufficient and reasonably available commercial quantities of a satisfactory quality are not mined, produced, or manufactured in the United States; or

(2) It is inconsistent with the public interest to apply the restrictions of the Buy American statute; or

(B) The end product is a COTS item; or

(2) For an end product that consists wholly or predominantly of iron or steel or a combination of both, an end product manufactured in the United States, if the cost of iron and steel not produced in the United States or a qualifying country constitutes less than 5 percent of the cost of all the components used in the end product (produced in the United States or a qualifying country means that all manufacturing processes of the iron or steel must take place in the United States or a qualifying country, except metallurgical processes involving refinement of steel additives). The cost of iron and steel not produced in the United States or a qualifying country includes but is not limited to the cost of iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings, not produced in the United States or a qualifying country, utilized in the manufacture of the end product and a good faith estimate of the cost of all iron or steel components not produced in the United States or a qualifying country, excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the end product contains multiple components, the cost of all the materials used in such end product is calculated in accordance with the explanation of cost of components in paragraph (1)(ii)(A) of this definition.

End product means those articles, materials, and supplies to be acquired under this contract for public use.

Foreign end product means an end product other than a domestic end product.

Free Trade Agreement country means Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Panama, Peru, or Singapore.

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Free Trade Agreement country end product means an article that

(1) Is wholly the growth, product, or manufacture of a Free Trade Agreement country; or

(2) In the case of an article that consists in whole or in part of materials from another country, has been substantially transformed in a Free Trade Agreement country into a new and different article of commerce with a name, character, or use distinct from that of the article or articles from which it was transformed. The term refers to a product offered for purchase under a supply contract, but for purposes of calculating the value of the end product includes services (except transportation services) incidental to its supply, provided that the value of those incidental services does not exceed the value of the product itself.

Moroccan end product means an article that

(1) Is wholly the growth, product, or manufacture of Morocco; or

(2) In the case of an article that consists in whole or in part of materials from another country, has been substantially transformed in Morocco into a new and different article of commerce with a name, character, or use distinct from that of the article or articles from which it was transformed. The term refers to a product offered for purchase under a supply contract, but for purposes of calculating the value of the end product includes services (except transportation services) incidental to its supply, provided that the value of those incidental services does not exceed the value of the product itself.

Panamanian end product means an article that

(1) Is wholly the growth, product, or manufacture of Panama; or

(2) In the case of an article that consists in whole or in part of materials from another country, has been substantially transformed in Panama into a new and different article of commerce with a name, character, or use distinct from that of the article or articles from which it was transformed. The term refers to a product offered for purchase under a supply contract, but for purposes of calculating the value of the end product includes services (except transportation services) incidental to its supply, provided that the value of those incidental services does not exceed the value of the product itself.

Peruvian end product means an article that

(1) Is wholly the growth, product, or manufacture of Peru ; or

(2) In the case of an article that consists in whole or in part of materials from another country, has been substantially transformed in Peru into a new and different article of commerce with a name, character, or use distinct from that of the article or articles from which it was transformed. The term refers to a product offered for purchase under a supply contract, but for purposes of calculating the value of the end product includes services (except transportation services) incidental to its supply, provided that the value of those incidental services does not exceed the value of the product itself.

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Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Qualifying country means a country with a reciprocal defense procurement memorandum of understanding or international agreement with the United States in which both countries agree to remove barriers to purchases of supplies produced in the other country or services performed by sources of the other country, and the memorandum or agreement complies, where applicable, with the requirements of section 36 of the Arms Export Control Act (22 U.S.C. 2776) and with 10 U.S.C. 2457. Accordingly, the following are qualifying countries:

- Australia
- Austria
- Belgium
- Canada
- Czech Republic
- Denmark
- Egypt
- Estonia
- Finland
- France
- Germany
- Greece
- Israel
- Italy
- Japan
- Latvia
- Lithuania
- Luxembourg
- Netherlands
- Norway
- Poland
- Portugal
- Slovenia
- Spain
- Sweden



Switzerland

Turkey

United Kingdom of Great Britain and Northern Ireland.

Qualifying country component means a component mined, produced, or manufactured in a qualifying country.

Qualifying country end product means

- (1) An unmanufactured end product mined or produced in a qualifying country; or
- (2) An end product manufactured in a qualifying country if

(i) The cost of the following types of components exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029, unless an alternate percentage is established for a contract:

- (A) Components mined, produced, or manufactured in a qualifying country.
- (B) Components mined, produced, or manufactured in the United States.

(C) Components of foreign origin of a class or kind for which the Government has determined that sufficient and reasonably available commercial quantities of a satisfactory quality are not mined, produced, or manufactured in the United States. Components of unknown origin are treated as foreign; or

- (ii) The end product is a COTS item.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

- (b) Unless otherwise specified, this clause applies to all items in the Schedule.

(c) The Contractor shall deliver under this contract only domestic end products unless, in its offer, it specified delivery of qualifying country end products, Free Trade Agreement country end products other than Bahraini end products, Moroccan end products, Panamanian end products, or Peruvian end products, or other foreign end products in the Buy AmericanFree Trade AgreementsBalance of Payments Program CertificateBasic provision of the solicitation. If the Contractor certified in its offer that it will deliver a qualifying country end product or a Free Trade Agreement country end product other than a Bahraini end product, a Moroccan end product,

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a Panamanian end product, or a Peruvian end product, the Contractor shall deliver a qualifying country end product, a Free Trade Agreement country end product other than a Bahraini end product, a Moroccan end product, a Panamanian end product, or a Peruvian end product, or, at the Contractors option, a domestic end product.

(d) The contract price does not include duty for end products or components for which the Contractor will claim duty-free entry.

(End of clause)

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| 88 | 252.225-7972 | PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS (DEVIATION 2024-00014) | AUG/2024 |
|----|--------------|-------------------------------------------------------------------------------------------------|----------|

(a) Definition. As used in this clause  
Covered foreign country means any of the following:  
(1) The Peoples Republic of China.  
(2) The Russian Federation.  
(3) The Islamic Republic of Iran.  
(4) The Democratic Peoples Republic of Korea.  
(b) Prohibition. In accordance with section 848 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2020 and section 817 of the NDAA for FY 2023, the Contractor shall not  
(1) Provide or use an unmanned aircraft system (UAS), or any related services or equipment, that  
(i) Is manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;  
(ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;  
(iii) Uses a ground control system or operating software developed in a covered foreign country, or by an entity domiciled in a covered foreign country; or  
(iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, a covered foreign country;  
(2) Provide or use a system for the detection or identification of a UAS, or any related services or equipment, that is manufactured in a covered foreign country or by an entity domiciled in a covered foreign country; or  
(3) On or after October 1, 2024, be an entity that operates equipment, as determined by the Secretary of Defense, from  
(i) Da-Jiang Innovations, or any subsidiary or affiliate of Da-Jiang Innovations;  
(ii) Any entity that produces or provides unmanned aircraft systems and is included on the Consolidated Screening List maintained by the International Trade Administration of the Department of Commerce (<https://www.trade.gov/consolidated-screening-list> ); or  
(iii) Any entity that produces or provides unmanned aircraft systems and  
(A) Is domiciled in a covered foreign country; or  
(B) Is subject to unmitigated foreign ownership, control, or influence by a covered foreign country, as determined by the Secretary of Defense in accordance with the National Industrial Security Program.  
(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts or other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(End of clause)